

CASES AND MATERIALS ON

FAMILY LAW

FOR THE SOUTH DAKOTA LAWYER

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Table of Contents

Section of Book, 7 th Edition Updated by this Supplement	Page in Book	Updated in this Supplement at:
I. Marriage		
C. Statutory Requisites	12	1
D. Selected Relevant Statutes	15	1
II. Putative Spouse, Palimony, and Related Issues	26	2
	28	2
	30	2
III. Paternity and the Presumption of Legitimacy		
D. Involuntary Proceedings	50	4
IV. Constitutional Considerations		
B. Full Faith and Credit		
3. Tribal Orders	95	7
C. The Court's Jurisdiction over the Person of the Def		
1. Issues of Status	100	8
V. The UCCJA & PKPA		
B. The UCCJA	133	9
	151	9
C. Preemption by the PKPA		
3. Modification Jurisdiction	167	10
VII. Divorce		
C. Defenses	228	10
D. Attorney's Fees	232	10
	234	11
VIII. Custody		
A. Introductory Comments and Relevant Statutes	252	11
B. The "Best Interests of the Child"		
2. Parental Misconduct	270	14
C. Primary Caretaker		
Guiding Principles for Child Custody Decisions	291	15
D. Relocations Out of State and Country		
3. Post Divorce Relocations	296	17
E. Non-Parents (Grandparents and others)	316	17

VIII. Custody (Continued)		
F. Visitation Rights		
1. Parents	321	18
SD Parenting Guidelines (NEW)	322	20
2. Nonparents (Grandparents and Others)	335	34
G. Joint Custody	346	34
IX. Child Support		
A. The Obligation and Its Boundaries		
1. Initiation of the Obligation		
a. Children of Marriages	347	38
3. Termination of the Obligation	357	39
	361	39
B. Child Support Guidelines	372	40
5. Application of the Guidelines – Notes	404	45
	409	45
X. Division of Property		
A. Introductory Comments	428	47
B. The “Marital-Separate” Distinction	438	48
	441	48
E. Retirement Plans	473	49
F. The Problem of “Omitted Assets”	486	49
XII. Alimony		
B. Traditional Alimony	521	51
D. Termination		
3. Death	547	52
XIV. Modification		
A. Custody		
1. Continuing Jurisdiction	569	53
	570	53
D. Alimony		
2. Criteria Warranting Modification	618	54
E. Property	629	55
XV. Enforcement		
A. Contempt		
3. Visitation Rights	655	55
B. Wage Assignments, Professional Licenses, etc.	657	56
D. Defenses		
3. Limitations	662	56
4. Estoppel and Laches	667	57
E. Criminal Prosecution		
1. Non-Support – Cruelty to Minor	675	57

XVI. Termination of Parental Rights		
C Adoption	696	58
D. Abuse & Neglect Proceedings	708	59
	713	60
	714	61
	744	61
	745	62
E. Indian Child Welfare Act (ICWA)		
2. Triggering ICWA	754	62
3. The Requirement of Notice	758	66
5. <i>Exclusive</i> Jurisdiction	773	66
6. Complying with ICWA	780	67
XVII. Tort Law in the Domestic Relations Arena		
B. Actions Between Unmarried Partners		
3. Stalking	803	68
C. Third Parties	826	69
F. New Theories	836	70
XIX. Miscellaneous		
B. Domestic Violence	871	70
APPENDIX		79
Status Report of Same-Sex Marriages and Civil Unions as recognized or rejected by the 50 states in the USA and as recognized or rejected globally, prepared by Professor Lynn D. Wardle		80
Course Syllabus , Law 853, Family Law, Fall 2014		84

I. Marriage

C. Statutory Requisites

Add the following as additional note at the bottom of page 12:

New Mexico Court of Appeals upholds validity of marriage notwithstanding absence of New Mexico marriage license. Man and woman obtain marriage license in Texas and travel into New Mexico for Marriage Ceremony. Under New Mexico statutes, the marriage license must be issued in New Mexico. Is this a valid marriage? The New Mexico Court of Appeals said yes in *Rivera v. Rivera*, 149 N.M. 66, 243 P.3d 1148, (N.M.App.,2010) a decision handed down on August 13, 2010. This decision holds that the requirements were directory, not mandatory. This opinion reviews recent cases from Arizona, Illinois, Connecticut, Washington, and Texas. I didn't see any reference to the South Dakota cases, but it reaches the same result as seen *Starret v. Tyon* found on page 11 of the Casebook.

D. Selected Relevant Statutes

Insert the following as a "Note" immediately preceding "QUESTIONS" on page 15:

SDCL 25-1-8 unsuccessfully urged as defense to criminal charge of bigamy. The defendant in *State v. Clements*, 2013 S.D. 43, secured marriage license and went through marriage ceremony two months after he filed for divorce against his current wife, but prior to actual divorce being granted. The state filed a criminal charge of bigamy, SDCL 22-22A-1. The trial court dismissed the charge relying upon SD's civil bigamy statute, SDCL 25-1-8, which states, "A subsequent marriage contracted by any person during the life of a former husband or wife of such person with any person other than such former husband or wife, is null and void from the beginning..." The trial court agreed with the defendant's argument, "that because a bigamous marriage is *void ab initio* according to SDCL 25-1-8, he was never legally married the second time, and thus, it is legally impossible to prosecute him for bigamy." The SD Supreme Court reversed in a unanimous decision with opinion by Chief Justice Gilbertson. The Court adopted a rule of construction which avoids making "legal impossibility" a defense. Otherwise, the defense of "legal impossibility" actually "nullifies the statute providing for criminal prosecution of bigamy."

II. Putative Spouse, Palimony, and Related Issues

NOTE: The discussion on pp. 26-29 is supplemented by: Status Report of Same-Sex Marriages and Civil Unions as recognized or rejected by the 50 states in the USA and as recognized or rejected globally, prepared by Professor Lynn D. Wardle, found as an Appendix to this Supplement, page 80, *infra*.

Add as a new note at the bottom of page 30:

U.S. Supreme Court holds DOMA unconstitutional in so far as it attempts, through the imposition of a federal definition, to restrict the institution of marriage to opposite sex couples in *U.S. v. Windsor*, 570 U.S. ___, 133 S.Ct. 2675, (2013).

Defense of Marriage Act (DOMA). DOMA consists of two parts: One part, codified at 28 U.S.C. § 1738C, addresses “full faith and credit” aspects concerning the obligation of each state to recognize marriages authorized by sister states. The other part of DOMA changed the definitions of “marriage” and “spouse” as found 1 U.S.C. § 7, thereby impacting how federal laws are applied.

Federal Definition of Marriage Section of DOMA. This decision relates only to the “federal definition” of marriage aspect of DOMA and does not address the “full faith and credit” aspect of DOMA.

Facts and lower court holdings. The dispute in this case involves the applicability of the federal estate tax exemption for a surviving “same-sex spouse” residing in New York, one of the several jurisdictions which permit same-sex marriages. The surviving spouse, who had paid \$363,053 in federal estate tax, had been denied an exemption by the IRS. She filed suit in federal court. Both the U.S. District Court and the 2nd Circuit Court of Appeals held that the definitional section of DOMA was unconstitutional, ordering a refund. The U.S. Supreme Court affirmed.

Regulation of Marriage has been traditionally reserved to the states. The Court recognizes this principle stating,

By history and tradition the definition and regulation of marriage has been treated as being within the authority and realm of the separate States.

The significance of state responsibilities for the definition and regulation of marriage dates to the Nation’s beginning; for “when the Constitution was adopted the common understanding was that the domestic relations of husband and wife and parent and child were matters reserved to the States.”

Discrimination as to different types of marriage warrants careful consideration as to constitutionality. The Court observed,

The State's power in defining the marital relation is of central relevance in this case. Here the State's decision to give this class of persons the right to marry conferred upon them a dignity and status of immense import. DOMA, because of its reach and extent, departs from this history and tradition of reliance on state law to define marriage. “ ‘[D]is-criminations of an unusual character especially suggest careful consideration to determine whether they are obnoxious to the constitutional provision.’ ”

Reach of DOMA. Through the expedient of simply changing the “definitions” of “marriage” and “spouse” in 1 U.S.C. § 7, Congress brought about an impact affecting “over 1,000 federal laws in which marital or spousal status is addressed as a matter of federal law” and a “myriad of federal regulations.”

Impact of DOMA. The Court described impact of DOMA, as applied to the situation today – where same-sex marriage has been legalized in numerous jurisdictions – as follows:

DOMA undermines both the public and private significance of state sanctioned same-sex marriages; for it tells those couples, and all the world, that their otherwise valid marriages are unworthy of federal recognition. This places same-sex couples in an unstable position of being in a second-tier marriage. The differentiation demeans the couple, whose moral and sexual choices the Constitution protects, and whose relationship the State has sought to dignify. And it humiliates tens of thousands of children now being raised by same-sex couples. The law in question makes it even more difficult for the children to understand the integrity and closeness of their own family and its concord with other families in their community and in their daily lives.

Liberty Interest Protected by the 5th Amendment. The Court states,

What has been explained to this point should more than suffice to establish that the principal purpose and effect of this law are to demean those persons who are in a lawful same-sex marriage. This requires the Court to hold, as it now does, that DOMA is unconstitutional as a deprivation of the liberty of the person protected by the Fifth Amendment of the Constitution.

III. Paternity and the Presumption of Legitimacy

D. Involuntary Proceedings

Add as additional notes, before “Tor’s Case,” on page 50:

South Dakota Husband Captured by Texas Presumption of Paternity for Child Fathered by Another. In *DeBoer v. DeBoer*, 2012 S.D. 74, the issue is whether Husband has a child support obligation for a son he did not father. W and son lived in Texas. After W & H were married, they moved to South Dakota where H resides. H & W wanted to change the son’s last name so as to reflect the same name as H. Instead of using an attorney to pursue a change of name (because they perceived such as too expensive), H & W elected to request a new birth certificate in Texas. They jointly executed an “Application for New Birth Certificate Based on Parentage.” This application was notarized. In the application H swore that he was the father. A new birth certificate was issued in Texas. As a result, H fell prey to a Texas statutory presumption of paternity as a result of his affidavit. In this SD divorce action, the trial court found that H successfully rebutted the presumption of paternity. The SD Supreme Court reversed and remanded for a resolution of W’s child support claim against H, stating:

Here, Bradley was not Taiton’s biological father. But Bradley voluntarily asserted paternity in a manner that created a rebuttable presumption of paternity under Texas law. Because the presumption was not rebutted, Bradley is legally obligated to support Taiton.

This opinion is unanimous with opinion authored by Justice Zinter.

Disestablishment of paternity and other adjustments concerning paternity determinations, and presumptions. The most significant and substantive accomplishment of the 2012 Child Support Commission is the authorization of “disestablishment” of paternity proceeding and related changes. The following recommendations have been implemented by the 2013 Legislature:

“Disestablishment of paternity” proceeding authorized in certain situations where supported by genetic test results. The legislature has created a new section to be added to SDCL 25-8 as SDCL 25-8-64, which reads as follows:

SDCL 25-8-64. Setting aside presumption or prior determination of paternity based on genetic test results--Factors in determining best interest of the child. The court may at any time before the child turns eighteen, find that a presumed or legally determined father is not the biological father of a child, based on genetic test results that either exclude the presumed or legally determined father as the biological father of the child or establish another person as the biological father of the child by the standards set in § 25-8-58. The court may under such circumstances set aside a presumption or prior

determination of paternity if it finds that setting aside a presumption or prior determination of paternity is in the best interest of the child. The court may but is not required to consider any of the following factors in determining the best interests of the child:

- (1) the length of time between the proceeding to adjudicate parentage and the time that the presumed or legally determined father was placed on notice that he might not be the genetic father;
- (2) the length of time during which the presumed or legally determined father has assumed the role of father of the child;
- (3) the facts surrounding the presumed or legally determined father's discovery of his possible nonpaternity;
- (4) the nature of the relationship between the child and the presumed or legally determined father;
- (5) the age of the child;
- (6) the harm or benefit that may result to the child if the presumed or legally determined paternity is successfully disproved;
- (7) the nature of the relationship between the child and any presumed or legally determined father;
- (8) the extent to which the passage of time reduces the chances of establishing the paternity of another man and a child-support obligation in favor of the child; and
- (9) any additional factors deemed by the court to be relevant to its determination of the best interest of the child.

Corresponding changes in SDCL 25-8. The following sections of existing SDCL 25-8 were changed so as to accommodate the new provision relating to “disestablishment of paternity” proceedings:

SDCL 25-8-7.1. Court ordered testing for paternity--Filing of results. In any action or proceeding in which the parentage of a child is at issue, including disestablishment proceedings pursuant to § 25-8-64, upon motion of the court, the department, or any of the interested parties, the court shall, for good cause shown, order the mother, the child, or any alleged father to submit to an examination of blood, tissue, or other bodily substances for the purpose of testing any genetic systems that are generally accepted within the scientific community for the conclusive determination of paternity probability. The results of the tests, together with the opinions and conclusions of the testing laboratory, shall be filed with the court. Upon written agreement of the mother and any presumed or alleged father, tests may be conducted prior to filing of an action. If the action is then filed, the test results shall be filed with the court and admitted into evidence as provided in § 25-8-7.3.

SDCL 25-8-9. Time for bringing proceedings. Proceedings to establish or disestablish paternity and enforce the obligation of the father may be brought at any time before the eighteenth birthday of the child.

SDCL 25-8-57. Rebuttable presumption of legitimacy. Any child born in wedlock, or born within ten months after dissolution of the marriage, is presumed legitimate to that marriage even if the marriage is subsequently declared to be null and void, or subsequently dissolved by divorce. This rebuttable presumption of legitimacy can only be disputed by the husband or wife, or a descendant of one or both of them, or a potential biological father of the child. The potential biological father has standing to file an action to rebut this presumption prior to obtaining genetic test results. The potential biological father cannot rebut the presumption without genetic test results meeting the requirements of § 25-8-58 establishing that he is the biological father of the child.

This presumption may be specifically rebutted pursuant to § 25-8-64.

Corresponding modification in SDCL 25-7. A new section in SDCL 25-7 has been created so as to accommodate the new provision relating to “disestablishment of paternity” proceedings *vis a vis* the child support obligation. The new section provides as follows:

SDCL 25-7-7.7. Termination of child support order upon disestablishment of paternity. When a presumed or legally determined father has a child support order and disestablishes his paternity pursuant to § 25-8-64, the child support order is automatically terminated from entry of the disestablishment order. The disestablished father continues to be responsible for any child support that accrued prior to the date of entry of the disestablishment order. However, nothing herein precludes the disestablished father from bringing a separate cause of action for recovery of previously ordered child support.

IV. Constitutional Considerations

B. Full Faith and Credit

3. Tribal Orders

Add as an additional note on page 95:

Tribal Court's purported assertion of exclusive jurisdiction under ICWA, based upon minor child's residency of only 6 days following death of mother, rejected where child was subject to ongoing custody jurisdiction of state court accompanied by geographic relocation restrictions placed upon mother prior to her death. The custody dispute in *Merrill v. Altman*, 2011 S.D. 94, 807 N.W.2d 821, arose upon the death of the child's mother. The dispute is between the maternal grandparents and the child's biological father. Custody, as between the parents, had been adjudicated in 2007 by the Brown County Circuit Court. The state court's decree in 2007 restricted mother's ability to relocate residency of the child. Furthermore, in 2009 the state court specifically denied mother's request to relocate with the child to the Mille Lacs Reservation in Minnesota. Mother died in an automobile accident on April 10, 2010. Six days after the mother's death, the maternal grandparents (with immediate possession of the child at the time) instituted a guardianship proceeding with the tribal court for Mille Lacs Band of Ojibwe Indian Tribe in Minnesota. Notice was given to biological father at 11:30 AM on April 12, 2010 for a hearing scheduled at 4:00 PM on that same date. The tribal court granted temporary custody to maternal grandparents on April 14, 2010 and this was followed by an award of permanent guardianship in favor of the maternal grandparents on September 7, 2010, asserting "exclusive jurisdiction" under ICWA. Maternal grandparents then petitioned the Brown County Circuit Court to "recognize" the tribal order. The state court refused to do so, holding that child's "residence for purposes of ICWA, was not established by the six days he resided on the Mille Lacs Reservation after [his mother's] death," especially where the state court had entered restrictive orders prohibiting relocation. Furthermore the state court, following the legal principles which have evolved under *Troxel v. Granville* (preferring parents over non-parents), held that father was entitled to custody. The SD Supreme Court affirmed, holding that the child "did not 'reside' on the reservation." The SD Supreme Court looked at commentary for the BIA guidelines which "suggests that residence requires more than 'simple physical presence.'" ¶19. In regard to the relocation restrictions, the opinion stated, "A court order that prohibits a person from living or moving to a certain place applies equally to domicile and residence" and that "such forum shopping cannot be condoned as it is incompatible with existing jurisdiction." ¶ 21. The opinion concludes with the statements that, "The Circuit Court did not err in finding that the Tribal Court did not have exclusive jurisdiction over the [grandparents'] guardianship petition. Consequently, the Circuit Court was correct in denying [grandparents'] petition to recognize the Tribal Court order." ¶ 23. This decision is unanimous with opinion authored by Chief Justice Gilbertson.

C. The Court's Jurisdiction over the Person of the Defendant

1. Issues of Status

Add the following as additional note at the bottom of page 100:

Stalking Order of Protection over Illinois Resident, based on conduct in Illinois, Approved for Protection of South Dakota Resident. A 17 year old sought and received an Order of Protection under South Dakota's "stalking" statutes in *March v. Thursby*, 2011 S.D. 73, 806 N.W.2d 239. The judge who granted the order "rotated off the Fall River County bench" and another judge was faced with "a motion seeking detailed findings of fact and conclusions of law" to support the order. The new judge "conducted a hearing and determined that she could not change the findings and conclusions of another circuit judge." On appeal the SD Supreme Court reversed the protection order "due to the insufficiency of the findings of fact." This is a unanimous per curiam opinion. This opinion also holds that

- 1) failure to proceed with the appointment of a guardian ad litem for the petitioner, only 17 at the time she signed the petition, was a mere "procedural irregularity" and did not defeat her ability to seek relief. This aspect of the decision lines up with *Beerman v. Beerman*, 1997 S.D. 11, which "held that protection of a minor overrides procedural irregularities" in the connection with our domestic violence statutes. In this opinion, the Court stated, "March did not seek a protection order under the domestic violence statutes. Rather, she sought a protection order under the stalking statutes. This does not make her protection any less important. March's protection outweighs the 'procedural irregularity' that occurred when March signed the petition while a minor." 2011 S.D. 73 at ¶ 10
- 2) defendant, a resident of Illinois, *waived* the issue of "lack of personal jurisdiction. Even though he had informed the trial court that he "was challenging jurisdiction of the South Dakota courts over him," he did not properly present the issue in a motion under SDCL 15-6-12 nor did he include the issue in a responsive pleading.
- 3) defendant's challenge to subject matter jurisdiction – on the basis that the acts giving petitioner fear of harm took place in Illinois, not South Dakota – failed because SD circuit courts have authority to hear "all cases" under Art. V, § 1 of S.D. Const. and the petitioner resides in South Dakota.

V. The UCCJA & PKPA

B. The UCCJA

Add the following as additional note on page 133:

Report on 2014 Legislation: HB 1062 adopts the Uniform Deployed Parents Custody and Visitation Act at SDCL 25-4B. This is a product of the Uniform Laws Commission. This legislation serves to establish stability and predictability in regard to custody arrangements for military parents who are deployed. This legislation forces parents to come together to work out a custody plan and sets standards of conduct. Testimony in support of this bill was offered by Deputy Secretary of the Department of the Military, Tom Barnett for the State Bar, the Attorney General's Office on behalf of DSS, and Ken Orrock for the American Legion. Testimony by Tom Barnett revealed that there is a certain contingency in Congress seeking to federalize these issues putting jurisdiction in federal court. Family Law matters are best resolved by state courts and many states, like South Dakota, are moving quickly to adopt this uniform legislation. This bill also repeals SDCL 33-6-10 which was enacted in 1994 and amended in 1995 and 2012. This act has been codified at SDCL 25-4B.

Report on 2011 Legislation: HB 1062 adopts the Uniform Adult Guardianship and Protective Proceedings Jurisdiction Act. This Uniform Act is similar to the UCCJEA in that it is designed to deal with jurisdictional disputes in the handling of Guardianship matters. Preference is given to the "home state." This act has been codified at SDCL 29A-5A.

Add as note 3, at the top of page 151:

Maine Supreme Court Holds South Dakota Custody Order not protected by PKPA in Termination Proceeding. In a decision handed down August 10, 2010, *In Re Higera N.*, 2010 ME 77, 2 A.3d 265 (Me. 2010), the Maine Supreme Court held that a South Dakota Interim Custody Order (in favor of the father) was not entitled to protection under the federal PKPA in a situation where the State of Maine – acting through its Department of Health and Human Services – brought a child protection action. This decision holds that the South Dakota temporary custody order was indeed a "custody determination" as defined by the PKPA, but that a "state" acting in its *parens patriae* role is not a "contestant" under the PKPA. This decision affirms the termination of parental rights of the father. The court notes that its ruling is consistent with the views expressed by the South Dakota Attorney General and United States Department of Justice/Attorney General/U.S. Attorney in *amicus curiae* briefs filed in the case.

V. The UCCJA & PKPA

C. Preemption by the Parental Kidnaping Prevention Act (“PKPA”)

3. Modification Jurisdiction

Add as a note, at the **bottom of page 167**:

Maine Supreme Court Holds South Dakota Custody Order not protected by PKPA in Termination Proceeding. In a decision handed down August 10, 2010, *In Re Higer N.*, 2010 ME 77, 2 A.3d 265 (Me. 2010), the Maine Supreme Court held that a South Dakota Interim Custody Order (in favor of the father) was not entitled to protection under the federal PKPA in a situation where the State of Maine – acting through its Department of Health and Human Services – brought a child protection action. This decision holds that the South Dakota temporary custody order was indeed a “custody determination” as defined by the PKPA, but that a “state” acting in its *parens patriae* role is not a “contestant” under the PKPA. This decision affirms the termination of parental rights of the father. The court notes that its ruling is consistent with the views expressed by the South Dakota Attorney General and United States Department of Justice/Attorney General/U.S. Attorney in *amicus curiae* briefs filed in the case.

VII. Divorce

C. Defenses

Add as a note before *Rykhus v. Rykhus*, page 228:

SDCL 25-4-29 Repealed. This statute, SDCL 25-4-29, was one of five statutes repealed by the 2014 South Dakota Legislature as “outdated and obsolete.”

D. Attorney’s Fees

Add as additional paragraph in note 11, page 232:

County not responsible for payment of court-appointed counsel for children in protection order proceeding. In *Pfuhal v. Pfuhal*, 2014 S.D. 25, the trial court appointed counsel for children in a protection order proceeding and ordered the County of Minnehaha to pay the attorney \$ 1,094.40. The SD Supreme Court reversed holding, “the circuit court lacked statutory authority to order Minnehaha to pay appointed counsel’s costs.” This decision is unanimous with opinion authored by Justice Severson. Circuit Judge Eng sat on this case, in lieu of Justice Wilbur.

Add as another note on page 234:

W's request for over \$370,000 in attorney fees rejected. In *Schieffer v. Schieffer*, 2013 S.D. 11, the trial court granted joint legal/physical custody to H & W, denying W's request to relocate to New York with the minor children. The trial court also ordered H to pay child support in accordance with the highest amount on the grid for combined net monthly income of \$20,000, refusing to extrapolate. The trial court also denied W's request for over \$370,000 in attorney fees. The SD Supreme Court affirmed in all respects and denied appellate attorney fees to either party. The Court's decision is authored by Chief Justice David Gilbertson. Justices Konenkamp and Zinter dissented on the issue of child support, each writing a separate opinion. Justice Zinter's opinion notes in ¶ 74 that, "The Schieffers' income was nine times greater than the income used to determine the top scheduled amount."

VIII. Custody

A. Introductory Comments and Relevant Statutes

Add the following as additional notes, page 252:

Report on 2014 Legislation: The matter of Joint Physical custody was addressed, with specific provisions enacted as SDCL §§ 25-4A-21 to 25-4A-27.

SDCL 25-4A-21. Joint physical custody--Consideration upon application--Findings. In any custody dispute between parents, upon application of either parent, the court shall consider granting joint physical custody of a minor child.

The court shall consider the factors set forth in § 25-4A-24, and shall make written findings of fact and conclusions of law regarding the best interests of the minor child, unless waived by both parties.

SDCL 25-4A-22. Rebuttable presumption upon finding of history of domestic abuse or assault. A finding by the court that a parent has a history of committing domestic abuse or has an assault conviction as defined in § 25-4-45.5, creates a rebuttable presumption that joint physical custody is not in the best interests of the child.

25-4A-23. Home study or custody evaluation--Mediation. Prior to ruling on a joint physical custody petition the court may require the parties to participate in a home study or a custody evaluation. Prior to the court ruling on a joint physical custody petition, either parent may request mediation pursuant to § 25-4-56.

In any case where the court orders the parties to participate in a home study, custody evaluation, or custody mediation, the court shall allocate the costs of the same between the parties.

SDCL 25-4A-24. Factors for consideration on request for joint physical custody.

In considering a contested request for joint physical custody, in addition to the traditional factors for determining the best interests of a child, the court shall consider the following factors:

- (1) Whether each parent is a suitable physical custodian for the child;
- (2) Whether each parent has an appropriate dwelling to support physical custody of the child;
- (3) Whether the psychological and emotional needs and the development of the child will suffer due to lack of active contact with, and attention from, both parents if joint physical custody is not granted;
- (4) Whether one parent has denied, without just cause, the child the opportunity for continuing contact with the other parent. Facts supporting an application of the presumption in § 25-4-45.5 constitute just cause;
- (5) Whether the parents can show mutual respect for and effectively communicate with each other regarding the child's needs. When considering this factor, the court shall include a determination of the degree to which the parents are in general agreement about their approach to daily child rearing matters;
- (6) The extent to which both parents actively care for the child;
- (7) Whether each parent can support the other parent's relationship with the child. When considering this factor, the court shall include a determination of conflict between the parents, as joint physical custody requires substantial and regular interaction between the parents on a myriad of issues;
- (8) Whether the joint physical custody arrangement is in accord with the child's wishes or whether the child has strong opposition to joint physical custody, taking into consideration the child's age, maturity, and reason for the objection;
- (9) Whether a parent has intentionally alienated or interfered with the other parent's relationship with the child;
- (10) Whether one or both parents are opposed to joint physical custody. A parent's opposition to joint physical custody is not determinative in itself, but only one factor for the court to consider;
- (11) The geographic proximity of the parents;
- (12) Whether the safety of the child, other children, or the other parent will be jeopardized by an award of joint physical custody;
- (13) Whether a parent allows another person custody or control of, or unsupervised access to, a child after knowing the person is required to register or is on the sex offender registry as a sex offender under chapter 22-24B;
- (14) Whether a parent has attempted to influence a custody determination by alleging, falsely or without good cause, that the child or the sibling of the child has been subjected to physical or sexual abuse or abuse and neglect, as set forth in § 25-4-45.8.

SDCL 25-4A-25. Parental agreement for joint physical custody. If both parents agree to joint physical custody of a child, the court is not required to consider the factors set forth in § 25-4A-24.

SDCL 25-4A-27. Modification of existing orders. The enactment of §§ 25-4A-21 to 25-4A-27, inclusive, does not constitute a substantial change in circumstances justifying the modification of existing custody orders, but the provisions of §§ 25-4A-21 to 25-4A-27, inclusive, shall apply to modification proceedings which are otherwise properly before the court.

Action by the 2012 Legislature, signed into law. HB 1055 specifically authorizes “joint physical custody.” This legislation amends SDCL 25-5-7.1 by adding an additional sentence as shown here:

SDCL 25-5-7.1. Joint legal custody order--Factors for court's consideration--Joint physical custody. In any custody dispute between parents, the court may order joint legal custody so that both parents retain full parental rights and responsibilities with respect to their child and so that both parents must confer on, and participate in, major decisions affecting the welfare of the child. In ordering joint legal custody, the court may consider the expressed desires of the parents and may grant to one party the ultimate responsibility over specific aspects of the child's welfare or may divide those aspects between the parties based on the best interest of the child. If it appears to the court to be in the best interest of the child, the court may order, or the parties may agree, how any such responsibility shall be divided. Such areas of responsibility may include the child's primary physical residence, child care, education, extracurricular activities, medical and dental care, religious instruction, the child's use of motor vehicles, and any other responsibilities which the court finds unique to a particular family or in the best interest of the child. *If the court awards joint legal custody, it may also order joint physical custody in such proportions as are in the best interests of the child, notwithstanding the objection of either parent.* (italicized sentence added by 2012 legislature.)

Action by the 2012 Legislature, signed into law. HB 1046 provides protection to deployed serviceman's role as primary custodial parent during period of deployment. This bill amends SDCL 33-6-10 so as to provide as follows:

SDCL 33-6-10. Temporary delegation of guardianship during active service in armed forces--Modification of custody. A servicemember ordered to deployment, who is the physical custodian or guardian of a minor or incapacitated person, may delegate by a properly executed power of attorney to another person for a period of one year or less any of the powers regarding care and custody of the minor child or ward, except the power to consent to marriage or adoption of a minor ward. If the power of attorney lapses prior to the servicemember's release from active duty, the power of attorney shall be automatically extended for an additional year unless the servicemember is sooner released from active duty. Neither the execution of such a power of attorney pursuant to this section, *nor the deployment itself, may be considered a factor in considering a substantial and material change of circumstances, nor a factor in a best interest of the*

child determination for purposes of permanent child custody modification proceedings. There is hereby imposed an automatic stay of all proceedings seeking a permanent change in custody of a minor child where the parent with physical custody is a servicemember called to active duty for deployment. Such stay shall continue for the period of service due to deployment, unless waived in writing by the service member. Nothing in this section precludes a petition by the noncustodial parent to temporarily change physical custody, the best interests of the child remains determinative for such temporary custody determinations. Any temporary order modifying physical custody of the child automatically terminates upon return of the servicemember from deployment and reverts back to the custody status or order in effect prior to the deployment. However, if upon return from the deployment either the servicemember or child exhibits a substantial and material change in circumstances which adversely affects the servicemember's ability to adequately care for the child, the best interests of the child shall be determinative. The temporary custody provisions of § 25-4A-11 do not apply to the temporary custody provisions of this section.

(italicized language provided by 2012 legislature.)

VIII. Custody

B. The “Best Interests of the Child”

2. Parental Misconduct

Add as new notes on **page 270**:

Father overcomes domestic abuse presumption against award of custody. The trial court, in *Nemec v. Goemen*, 2012 S.D. 14, 810 N.W.2d 443, awarded primary physical custody of 3 minor children to father. The parties were never married and the paternal grandmother had previously served as primary caretaker/guardian of the children for a period of time. There was a history of domestic abuse. Father had pled guilty to simple assault and disorderly conduct in 2006 and 2007. Thereafter father “changed his lifestyle. He quit using illegal drugs and drinking.” The trial court found that father’s evidence was sufficient to rebut the presumption that he should “not” be awarded custody under SDCL 25-4-45.5 for conviction of domestic abuse. The SD Supreme Court affirmed in this unanimous decision with opinion authored by Chief Justice Gilbertson. Circuit Judge Anderson sat on this case in lieu of Justice Wilbur.

Custody award to father upheld, compelling circumstance to separate siblings found in evidence of domestic abuse in mother’s home, mother’s alcohol related misconduct and greater stability in father’s home. The dispute in *Beaulieu v. Birdsbill*, 2012 S.D. 45, 815 N.W. 2d 569, is over custody of a seven year old child. Father and Mother were never married but lived together for two years. Upon separation, Mother served as primary custodian of child

and eventually gave birth to a half-sister to child. Father sought custody in 2011 and the trial court ruled in his favor. Mother appealed arguing an absence of “compelling circumstances” to justify separation of siblings. The SD Supreme Court affirmed the award for Father, holding that the trial court acted appropriately in holding that Father would provide “greater stability” for the child. The trial court appropriately considered evidence of “domestic abuse” in mother’s home and mother’s “alcohol related misconduct.” As to the “domestic abuse” evidence, Mother attempted to create an argument *vis a vis* SDCL 25-4-45.5 which requires a “history of domestic abuse” in order to establish a “rebuttable presumption” in favor of the other parent. This opinion states,

although the rebuttable presumption contained in SDCL 25-4-45.5 was not triggered, the trial court was still free to weigh the [domestic abuse] evidence.

This is a unanimous decision with opinion authored by Justice Wilbur.

Custody award to father affirmed where mother’s “live-in” relationships with three different men in rapid succession was detrimental to child. The situation in *Benson v. Loffelmacher*, 2012 S.D. 75, is a custody dispute relating to a child born out of wedlock. Father first began seeking custody when the child was almost 3 years old. His effort to be awarded primary custody culminated in a favorable award when the child was almost 7 years old. The trial court was influenced by the fact Mother had been involved in separate “live-in” relationships with three different men. The South Dakota Supreme Court affirmed the award of primary custody to Father in a unanimous opinion authored by Justice Konenkamp. The opinion states in ¶ 19,

In the circuit court’s view, Michelle’s relationships with three men, living in her home, “seemingly in rapid succession,” occurred “with no regard for the impact of these changing relationships on [A.L.]” One of the relationships resulted in a referral to child protection services for possible sexual abuse, and A.L. received counseling.

C. Primary Caretaker

Guiding Principles for Child Custody Decisions

Add as new notes following note 6, page 291:

Custody Transfer of 5 Minor Children to Father Affirmed. The decision in *Severson v. Hutchinson*, 2013 S.D. 70 involves a situation where the parties were divorced in 2010 with mother being awarded primary physical custody of 5 children. Mother remarried and a “domestic violence incident” arose concerning mother and her new husband. As a result of this incident, the assertion that mother failed to protect the children from new husband’s violent

behavior, and other allegations, father sought a temporary and permanent change of custody. The trial court ruled for father, granting him both temporary (following an emergency custody hearing) and permanent custody (following a 3 day trial). The opinion states, in ¶14:

In doing so, the trial court noted that both parents are fit parents, though neither parent is perfect. The trial court found that while Father “present[ed] a more calm, stable and consistent demeanor, at least as . . . to the . . . [c]hildren[.]” “[Father] need[ed] to work on his communication skills[.]” In discussing Mother’s demeanor, the trial court noted that Mother was “volatile and emotional in her dealing with issues and that contribute[d] to conflict.” The trial court also acknowledged its concerns regarding Mother’s prescribed medication and her consistency in taking her prescribed medication and in attending counseling.

The SD Supreme Court affirmed on appeal in a unanimous decision with opinion authored by Justice Wilbur. The Court also denied appellate attorney fees to both parties. The opinion reviews the *Fuerstenberg* factors, finding no abuse of discretion by the trial court.

Transfer of custody to Father Upheld. The SD Supreme Court upheld the trial court’s transfer of custody from mother to father in *Roth v. Haag*, 2013 S.D. 48: This child was born out of wedlock in 1998 while the parents were living together. After birth, mother retained primary custody and father exercised visitation rights in accordance with SD’s noncustodial parenting time standards. Both mother and father married others and had children in their marriages. When the child was 10 years old, mother’s family was referred to a “home-based therapy program” by DSS as a result of alleged abusive behavior by mother’s husband. This situation evolved into ongoing counseling, increased involvement by father, and eventual joint legal custody for father. When child was 14, Father filed a motion for change in custody and the trial court ruled in father’s favor. The SD Supreme Court affirmed in a unanimous decision with opinion authored by Justice Wilbur. The Supreme Court upheld the trial court’s application of the *Fuerstenberg* factors, rejecting mother’s arguments that the trial court erred in not giving proper deference to the factor of “stability” and the principle against the “separation of siblings” (in this case, as applied to half-siblings).

Custody award to father upheld, compelling circumstance to separate siblings found in evidence of domestic abuse in mother’s home, mother’s alcohol related misconduct and greater stability in father’s home. The dispute in *Beaulieu v. Birdsbill*, 2012 S.D. 45, 815 N.W.2d 569, is over custody of a seven year old child. Father and Mother were never married but lived together for two years. Upon separation, Mother served as primary custodian of child and eventually gave birth to a half-sister to child. Father sought custody in 2011 and the trial court ruled in his favor. Mother appealed arguing an absence of “compelling circumstances” to justify separation of siblings. The SD Supreme Court affirmed the award for Father, holding that the trial court acted appropriately in holding that Father would provide “greater stability” for the child. The trial court appropriately considered evidence of “domestic abuse” in mother’s home and mother’s “alcohol related misconduct.” As to the “domestic abuse” evidence, Mother

attempted to create an argument *vis a vis* SDCL 25-4-45.5 which requires a “history of domestic abuse” in order to establish a “rebuttable presumption” in favor of the other parent. This opinion states,

although the rebuttable presumption contained in SDCL 25-4-45.5 was not triggered, the trial court was still free to weigh the [domestic abuse] evidence.

This is a unanimous decision with opinion authored by Justice Wilbur.

D. Relocations Out of State and Country

3. Post Divorce Relocations

Add as an additional note case on page 296:

Custodial mother permitted to relocate to California with children. In *Brosnan v. Brosnan*, 2013 S.D. 81, custodial mother sought to relocate to California with her two children and new husband. Father objected. The trial court granted relocation and awarded mother \$3,500 attorney fees. The SD Supreme Court affirmed both rulings and also awarded mother \$5,000 in appellate attorney fees. The Court stated, in ¶35, “In its 20-page, single-spaced memorandum and subsequent findings of fact and conclusions of law applying the relevant factors, the circuit court made a balanced and methodical decision. Thus, the circuit court did not abuse its discretion in determining that relocation was in the best interests of the children.” This decision is unanimous with opinion by Justice Wilbur.

E. Non-Parents (Grandparents and others)

Add as additional note cases on **page 316**:

South Dakota Supreme Court Upholds Timmie’s Law as Constitutional. The trial court in *Fiest Lemeiux-Feist v. State*, 2010 S.D. 104, 793 N.W.2d 57, held that *Timmie’s Law*, as enacted by the 2002 legislature was unconstitutional. The SD Supreme Court reversed in this unanimous decision with opinion authored by Justice Meierhenry. This decision reconciles existing SD case law involving nonparents, including the recent decision relating to the grandparent visitation statute. The Court rejects the argument that parental unfitness is required prior to an award of custody to a non-parent, stating, “Although we do not interpret [the U.S. Supreme Court decision in] *Troxel* to require a finding of parental unfitness, we note that parental unfitness is implicit in many of the circumstances the South Dakota Legislature identified in SDCL 25-5-29 and 25-5-30. See SDCL 25-5-29 (1-3). See also SDCL 25-5-30 (1-3) & (6-9). Even so, the Legislature has provided a mechanism for extraordinary circumstances

to justify awarding custody or visitation to a third party over a fit parent's objections. SDCL 25-5-29(4); SDCL 25-5-30."

Custody Award to Maternal Grandparents Reversed, Father's Presumptive Right Not Rebutted. The SD Supreme Court reversed the trial court's award of primary custody to maternal grandparents in *Veldheer v. Peterson & Mandel*, 2012 S.D. 86. The Court held, "Father's presumptive right to custody was [not] rebutted by clear and convincing evidence of extraordinary circumstances that would result in serious detriment to the children." This opinion re-states prior language of the Court to the effect that "the law does not permit an award of custody to 'nonparents simply because they may be better custodians.'" The Court's decision is unanimous, with opinion authored by Justice Zinter.

F. Visitation Rights

1. Parents

Add the following as additional notes, bottom of page 321:

Prohibition of visitation altogether is authorized under "best interests of the child" standard. The trial court in *Pieper v. Pieper*, 2013 S.D. 98, awarded primary custody of parties' children to Wife. Based upon evidence of improper sexual contact between Husband and one child, Husband was criminally prosecuted for first degree rape. Husband was acquitted by jury trial. The trial court awarded husband supervised visitation, expressing the belief that it was without authority to order a complete "prohibition" of visitation and that the court had a duty to work toward reunification of parent and child. Wife appeals, asserting *inter alia* error on the visitation award. The SD Supreme Court agreed with Wife on the visitation matter, holding, in ¶ 19,

The circuit court may limit visitation if it is in the best interests of the child. That limitation may be to prohibit visitation altogether.

The Court further holds that the lesser burden of proof of "preponderance of the evidence" is to be applied in regard to the assertion that husband sexually abused the child, not the "clear and convincing evidence" standard utilized in Abuse & Neglect proceedings. The case is remanded for reconsideration of the evidence and visitation for Husband. This decision is unanimous with opinion authored by Justice Severson. Circuit Judge Eckrich sat on this case, in lieu of Justice Wilbur.

Restricted Visitation Rights Upheld. The opinion in *Marko v. Marko*, 2012 S.D. 54, 816 N.W.2d 820, addresses an appeal from a divorce proceeding. Three issues were presented: 1) the trial judge's duty to disqualify himself (or not) based upon a litigant's perception of bias and

prejudice where this same judge had previously adjudicated another divorce case in which the father's current girlfriend was involved with the husband; 2) alleged abuse of discretion in restricting visitation rights to father so as to prohibit visitation while father's girlfriend is present; and 3) whether mother proved up "extreme cruelty" as a ground for divorce. The SD Supreme Court affirmed the lower court in a unanimous ruling with opinion by Justice Konenkamp. The trial court's ruling on restricted visitation is set forth in ¶ 15 as follows:

Jim's visitation was conditioned on the following: (1) Emmy "shall be immediately removed from Jim's apartment and shall not reside there"; (2) "during visitation, Jim shall have no contact with Emmy, meaning that she will not be physically present, nor shall she be in contact with Jim via phone, email, text, or other means"; and (3) "Jim shall not allow Emmy to have contact in any form with any of the children. . . ." If Jim failed to comply with these conditions, his visitation would be "restricted to the Family Visitation Center and supervised there until he is willing and able to so comply."

¶¶ 17-30 provide an extensive review of the law relating to the issue of disqualification of a judge, concluding that the trial judge had acted appropriately. The matter of restricted visitation and the finding of extreme cruelty were both upheld as being supported by the evidence.

Action by the 2012 Legislature, signed into law. HB 1062 amends 25-4A-16.1 so as clarify the supporting documentation necessary for a request to implement the standard parenting guidelines. The 3rd sentence of SDCL 25-4A-16.1 was amended so as to read as follows:

25-4A-16.1. Request for implementation of standard visitation guidelines--Objection--Hearing--Order. Subject to the jurisdictional and procedural provisions of chapter 26-5B, any parent subject to a court order of this state or subject to the jurisdiction of a court of this state pursuant to chapter 26-5B relating to visitation, custody, or child support may request the court to enter an order implementing the standard visitation guidelines. If the request is made in a child support proceeding, compliance with chapter 26-5B, including appropriate notice and an opportunity to be heard, if not previously provided, is required. *The request shall be in writing and shall include a copy of the existing order establishing custody, visitation, or support and provide a current address of the responding party.* Upon filing of the written request, the moving party shall serve a copy of the standard guidelines, together with a copy of the request and provide notice that absent an objection, the guideline visitation shall be imposed. The notice shall provide instructions as to the manner in which objections may be made. The service of such notice shall be deemed complete when an affidavit of the service of such notice and of the particular mode thereof, duly signed and verified by the person or officer making the service, shall have been filed with the court and such record or affidavit shall be presumptive evidence of the completed service of the notice herein required. If a party objects to the imposition of the standard guidelines within ten days of service, the court shall conduct an expedited hearing as soon as practical. Based upon

the evidence presented at the hearing, the court may order the parties to abide by the standard visitation guidelines or may order any other relief as it deems appropriate.

(italicized language reflects the revision made by the 2012 legislature.)

Report on 2011 Legislation: SB 12 establishes a Visitation Grant Advisory Group. Since 1997 DSS has been applying for federal grant money to facilitate visitation. This money, usually \$100,000 per year, has been administered by a Visitation Task Force established under the Unified Judicial System. DSS applies for the federal money but UJS approves use of funds. This legislation vests DSS with full administration of the funds through this new Visitation Grant Advisory Group. This legislation transfers the administration of funds from UJS to DSS. The Commission will consist of 9 members, three of whom are to be circuit judges appointed by the SD Supreme Court Chief Justice, 2 family law attorneys appointed by the Governor, 2 at large members appointed by the Governor, 2 legislators with one appointed by the Speaker of the House and one appointed by the President Pro Tempore of the Senate.

Add the following as an additional note on page 322, before the South Dakota Visitation Guidelines:

The South Dakota Supreme Court approved the following Parenting Guidelines on April 19, 2012. This document was formerly known as the “Visitation Guidelines.) Proposed Amendment to Parenting Guidelines (formerly Visitation Guidelines):

SOUTH DAKOTA PARENTING GUIDELINES

A powerful cause of stress, suffering, and maladjustment in children of divorce or separation is not simply the divorce or separation itself, but rather the continuing conflict between their parents before, during, and after the divorce-and/or separation. To minimize harm to their children, parents should agree on a parenting arrangement that is most conducive to the children having frequent and meaningful contact with both parents, with as little conflict as possible. When parental maturity, personality, and communication skills are adequate, the ideal arrangement is reasonable time with the noncustodial parent upon reasonable notice, since that provides the greatest flexibility. The next best arrangement is a detailed parenting agreement made by the parents to fit their particular needs and, more importantly, the needs of their children. It is recommended that an annual calendar be prepared so that the parents and the children are aware of the parenting schedule. If the parents are unable to agree on their own Parenting Plan, however, these Guidelines become mandatory and will be used as their Parenting Plan. SDCL 25-4A-10, 25-4A-11. In the event a parent’s time with the children becomes an issue in court, the judge will set whatever Parenting Plan best meets the needs of the children.

1. GENERAL RULES.

A parent must always avoid speaking negatively about the other parent and must firmly discourage such conduct by relatives or friends. Each parent should speak in positive terms about the other parent in the presence of the children. Each parent must encourage the children to respect the other parent. Children should never be used by one parent to spy or report on the other parent. The basic rules of conduct and discipline established by the custodial parent should be the baseline standard for both parents and any step-parents, and consistently enforced by all caregivers, so that the children do not receive mixed messages.

Children will benefit from continued contact with all relatives and friends on both sides of the family for whom they feel affection. Such relationships must be protected and encouraged. But relatives, like parents, need to avoid being critical of either parent in front of the children. Parents should have their children maintain ties with both the maternal and paternal relatives. Usually the children will visit the paternal relatives during times when the children are with their father and the maternal relatives during times when they are with their mother.

In cases where both parents reside in the same community at the time of separation, and then one parent leaves the area, thus changing the Parenting Plan, the court will consider imposing on the parent who moved the travel costs for the children necessary to facilitate future time with the children; however, the court will also consider other factors such as the economic circumstances of the parents

and the reasons prompting the move. Before relocating the children, the custodial parent is required to comply with South Dakota's statutory forty-five-day written notice requirements. SDCL 25-4A-17.

1.1 Parental Communication. Parents must always keep each other advised of their home and work addresses and telephone numbers. Whenever feasible, all communication concerning the children must be conducted directly between the parents in person, or by telephone, or at their residences, or via email or text message. Absent an emergency, communication should not occur at a parent's place of employment.

1.2 Grade Reports and Medical Information. The custodial parent must provide the noncustodial parent with the name, address, and telephone number of the school where any child attends and must authorize the noncustodial parent to communicate concerning the child directly with the school and with the child's

doctors and other professionals, outside the presence of the custodial parent. The noncustodial parent also has an obligation to contact the school to ensure receipt of school report cards, notices, etc., so that he/she can remain involved with their child's education. Both parents will be listed on all of the child's records. Each parent must immediately notify the other parent of any medical emergencies or serious illnesses of a child. Access to records and information pertaining to a minor child, including, but not limited to, medical, dental, orthodontia and similar health care, and school records must be made equally available to both parents. Counseling, psychiatric, psychotherapy, and other records subject to confidentiality or privilege must only be released in accordance with state and federal law; but, if available to one parent, must be available to both. The parents must make reasonable efforts to ensure that the name and address of the other parent is listed on all such records. If the child is taking medications, the custodial parent must provide a sufficient amount and appropriate instructions. If either parent enrolls the child in any social, beneficent, religious, or peer group activity, service, benefit, or program for which written application is required, the enrolling parent must provide the name and address of the other parent on, or supplementary to, the application. [This provision does not apply to insurance or annuities.] The parent enrolling the child shall advise the other parent of the name of the coach, director, and organization providing the activity along with their contact information. The custodial parent must notify the noncustodial parent of all school or other events (for example, church and sports) involving parental participation. The noncustodial parent also has an obligation to contact the activity director to ensure receipt of information such as practice schedules, games, etc.

1.3 Clothing. The custodial parent will send an appropriate supply of children's clothing with the children, which must be returned clean (when reasonably possible) with the children by the noncustodial parent. The noncustodial parent must advise, as far in advance as possible, of any special activities so that

appropriate clothing belonging to the children may be sent. It is recommended that the noncustodial parent have some basic clothing available in his/her home to ensure that all of the children's basic needs are met.

1.4 Withholding Support or Time With the Children. Neither time with the children nor child support is to be withheld because of either parent's failure to comply with a court order. Only the court may enter sanctions for non-compliance. Children have a right both to support and, absent abuse or other safety concerns, time with the noncustodial parent, neither of which is dependent upon the other. In other words, no support does **not** mean the children will spend no time with the noncustodial parent, and no time with the noncustodial parent does **not** mean no

support needs to be paid to the custodial parent. If there is a violation of either the parenting order or a support order, the exclusive remedy is to apply to the court for appropriate sanctions.

1.5 Adjustments in Parenting Plan. Although this is a specific schedule, the parents are expected to fairly modify the Parenting Plan when family necessities, illnesses, or commitments reasonably so require. The requesting parent must act in good faith and give as much notice as circumstances permit.

1.6 Parent's Vacation with Children. Unless otherwise specified in a court order or agreed upon by the parents, each parent is entitled to a vacation with the children for a reasonable period of time, usually equal. The custodial parent should plan a vacation during the time when the other parent is not scheduled to spend time with the children. Parents are encouraged to coordinate vacation plans.

1.7 Insurance Forms. The parent who has medical insurance coverage on the children must supply to the other parent an insurance card and, as applicable, insurance forms and a list of insurer-approved or HMO-qualified health care providers in the area where the other parent is residing. Except in emergencies, the parent taking the children to a doctor, dentist, or other provider not so approved or qualified may be required to pay the additional cost thus created. However, when there is a change in insurance, which requires a change in medical care providers and a child has a chronic illness, thoughtful consideration should be given by the parents to what is more important, i.e., allowing the child to remain with the original provider or the economic consequences of changing carriers. When there is an obligation to pay medical expenses, the parent responsible for paying must be promptly furnished with the bill, and where applicable, the explanation of benefits, by the other parent. The parents must cooperate in submitting bills to the appropriate insurance carrier. Thereafter, the parent responsible for paying the balance of the bill must make arrangements directly with the health care provider and will inform the other parent of such arrangements. Insurance refunds must be promptly turned over to the parent who paid the bill for which the refund was received.

1.8 Child Support Abatement. Unless a court order otherwise provides, child support will not abate during any period when the children are with the noncustodial parent. South Dakota law allows for child support abatements and offsets under certain circumstances. See generally SDCL 25-7. However, no abatement or offset may be taken unless there is a court order authorizing it.

1.9 Noncustodial Parent's Missed Time With the Children. When scheduled time with the children cannot occur due to events beyond either parent's control, such as illness of the parent exercising time with the children, then a mutually agreeable substituted date will be arranged, as quickly as possible. Each parent must timely advise the other parent when scheduled time with the children cannot be exercised. Missed time with the children must not be unreasonably accumulated.

1.10 Children of Different Ages. Except with very young children and adolescents, it usually makes sense for all the children to share the same schedule of parenting time with the noncustodial parent. Having brothers or sisters along can be an important support for children. Infants have special needs that may well prevent a parent from being with both the infant and the older children at the same time. Teenagers' special needs for peer involvement and for some control of their own lives may place them on different schedules from their younger brothers and sisters. Because it is intended that the noncustodial parent's time with the children be a shared experience between siblings and, unless these guidelines, a court order, or circumstances such as age, illness, or a particular event suggests otherwise, all the children should participate together in spending time with the noncustodial parent.

1.11. Communication with Children.

Either parent may call, text, email, or Skype (or use similar technology) to communicate with the children at reasonable times and with reasonable frequency during those periods the children are with the other parent. The children may, of course, call, text, email, or Skype (or use similar technology) to communicate with either parent, at reasonable hours and with reasonable frequencies. Parents are cautioned that communication between the parent and the children should not be so excessive as to interfere with the other parent's time, nor used to undermine the other parent's authority. During long vacations, the parent with whom the children are on vacation is required to make the children available for telephone calls with the other parent at least every three days. At all other times, the parent the children are with must not refuse to answer the other parent's telephone calls or turn off the telephone in order to deny the other parent telephone contact. If a parent uses an answering machine or cell phone voicemail, messages left should be returned by a telephone call to that parent as soon as possible. Parents should agree on a specified time for calls to the children so that the children will be made available. A parent may wish to provide an older child with a cell phone to facilitate these communications. In such instances, it is not appropriate for a parent to use restrictions from talking to the other parent on that cell phone as a means of punishing the child. Communication between a parent and child must not be

censored, recorded, or monitored, absent a court order. With older children, establishing an email account for communication with the other parent is recommended and should likewise not be read or monitored by the other parent without court permission. Email communication or text messaging between parents is also helpful in keeping the other parent informed about the children. Abuse, neglect, criminal activity, or protection orders may impact access to information regarding the custodial parent or the children.

1.12 Other Contact. Parents have an unrestricted right to send cards, letters, packages, audio and video cassettes, CDs, or similar items, to their children. Children also have the same right to send items to their parents. Neither parent will interfere with this right. A parent may wish to provide the children with self-addressed, stamped envelopes for the children's use in corresponding with that parent.

1.13 Privacy of Residence. A parent may not enter the residence of the other parent except by express invitation of the resident parent, regardless of whether a parent retains a property interest in the residence. The children must be picked up at and returned to the front entrance of the other parent's residence. The parent dropping off the children must not leave until the children are safely inside the other parent's residence. Parents must refrain from surprise visits to the other parent's home. A parent's time with the children is his/her own, and the children's time with the other parent is equally private.

1.14 Special Considerations for Adolescents. While children never get to choose where they live, within reason, the parents should honestly and fairly consider their teenager's wishes on time with a parent. Neither parent should attempt to pressure their teenager to make a decision on time with a parent adverse to the other parent. Teenagers should explain the reasons for their wishes directly to the affected parent, without intervention by the other parent.

1.15 Day Care Providers. When parents reside in the same community, they should use the same day care provider. To the extent feasible, the parents should rely on each other to care for the children when the other parent is unavailable.

1.16 Special Circumstances:

A. Child Abuse. When child abuse has been established and a continuing danger is shown to exist, all time with the abusive parent must cease or only be allowed under supervision, depending on the circumstances. Court intervention is usually required in child abuse cases.

- B. Domestic Abuse.** Witnessing domestic abuse has long-term, emotionally detrimental effects on children. A person who loses control and acts impulsively with the other parent may be capable of doing so with children as well. Depending on the nature of the spousal abuse and when it occurred, the court may require an abusive parent to successfully complete appropriate counseling before being permitted unsupervised time with the children.
- C. Substance Abuse.** Time with the children must not occur when a parent is abusing substances.
- D. Long Interruption of Contact.** In those situations where the noncustodial parent has not had an ongoing relationship with the children for an extended period, time with the children should begin with brief parenting time and a gradual transition to the Parenting Plan in these guidelines.
- E. Abduction Threats.** Noncustodial parents who have threatened to abduct or hide the children will have either no time with the children or only supervised time.
- F. Breastfeeding Child.** Parents must be sensitive to the special needs of breastfeeding children. A child's basic sleep, feeding, and waking cycles should be maintained to limit disruption in the child's routine. Forcibly changing these routines due to the upheaval of parental disagreement is detrimental to the physical health and emotional well-being of the child. On the other hand, it is important that the child be able to bond with both parents.
- (a) For children being exclusively breastfed, the nursing child can still have frequent parenting time with the father. The amount of time will be dictated by the infant's feeding schedule, progressing to more time as the child grows older. Yet where both parents have been engaged in an ongoing caregiving routine with a nursing child, the same caregiving arrangement should be continued as much as possible to maintain stability for the child. If the father has been caring for the child overnight or for twenty-four hour periods while the nursing mother sleeps or works, then these guidelines encourage that arrangement to continue.
- (b) A mother may not use breastfeeding as a means to deprive the father of time with the child. If, for example, a nursing mother uses day care or a babysitter for the child, the same accommodations (i.e., bottle

feeding with breast milk or formula, or increased time between breast feeding sessions) used with the day care provider or babysitter will be used with the father, if the father is capable of personally providing the same caregiving.

- G. **A Parent's New Relationship.** Parents should be sensitive to the danger of exposing the children too quickly to new relationships while they are still adjusting to the trauma of their parents' separation and/or divorce.
- H. **Religious Holidays and Native American Ceremonies.** Parents must respect their children's needs to be raised in their faith and to maintain their cultural heritage and must cooperate with each other to achieve these goals. However, religious holidays and Native American ceremonies should not be used to unreasonably deprive the noncustodial parent of time with the children.
- I. **Other.** The court will limit or deny time with the children to parents who show neglectful, impulsive, immoral, criminal, assaultive, or other risk-taking behavior with or in the presence of the children.

2. NONCUSTODIAL PARENTING TIME WITH CHILDREN UNDER AGE FIVE.

2.1 Children Under Age Five Generally. Newborns (birth to three months) and infants (three to six months) have a great need for continuous contact with their primary caregiver, but also frequent contact with both parents who provide a sense of security, nurturing, and predictability. Generally, overnights for a very young child is not recommended unless the noncustodial parent is very closely attached to the child and is able personally to provide primary care, the child is adaptable, and the parents are cooperative. Older children are able to tolerate more and longer separations from one parent or the other. The following guidelines for children under age five are designed to take into account childhood developmental milestones. Since children mature at different rates, these may need to be adjusted to fit a child's individual circumstances. These guidelines will not apply in those instances where the parents are truly sharing equally all the caregiving responsibilities for the children and the children are equally attached to both parents. In those situations where the custodial parent has been the primary caregiver and the noncustodial parent has maintained a continuous relationship with the children, but has not shared equally in child caregiving, the following guidelines generally apply.

2.2 Newborns - Birth to Three Months. Three, two-hour custodial periods per week and one weekend custodial period for six hours at the custodial parent's residence or another agreed location. No overnights, except in circumstances described in 1.16 F(a) and (b) (noncustodial parent caring for infant in accord with previous arrangements). Breastfeeding must be accommodated, but the parents must cooperate in working out alternatives. See Paragraph 1.16 F (breastfeeding).

2.3 Infants - Three to Six Months. Alternative Parenting Plans: (1) Three, three hour custodial periods per week, with one weekend day for six hours. Breast feeding must be accommodated. Or (2) Three, three-hour custodial periods per week, with one overnight on a weekend for no longer than a twelve-hour period, if the child is not breastfeeding and the noncustodial parent is capable of personally providing primary care. See exceptions in Paragraph 1.16 F(a) and (b).

2.4 Babies - Six to Twelve Months. Alternative Parenting Plans: (1) Three custodial periods per week of up to four hours each with one weekend day for six hours; or (2) Three custodial periods per week of up to four hours each with one weekend day for six hours, but with one overnight not to exceed twelve hours, if the child is not breastfeeding, and the noncustodial parent is capable of providing personal primary care; or (3) Child spends time in alternate homes, but spends significantly more time in one parent's home and no more than one to two overnights spaced regularly throughout the week at the other parent's home, if the child is not breastfeeding. As to arrangements (1), (2), and (3), see exceptions in Paragraph 1.16 F(a) and (b). Arrangement (3) should be considered only for mature, adaptable children and cooperative parents.

2.5 Toddlers – Twelve to Thirty-six Months. Alternative Parenting Plans: (1) Three custodial periods per week of up to eight hours each on a predictable schedule; or (2) Three custodial periods per week of up to eight hours each on a predictable schedule in addition to one overnight per week; or (3) Child spends time in alternate homes, but with significantly more time in one parent's home with one or two overnights spaced regularly throughout the week. Arrangement (3) requires an adaptable child and cooperative parents.

2.6 Preschoolers - Three to Five Years. Alternative Parenting Plans: (1) One overnight custodial period and one midweek custodial period with the child returning to the custodial parent's home at least one hour before bedtime; or (2) Two or three nights at one home, spaced throughout the week, the remaining time at the other parent's home. Arrangement (2) requires an adaptable child and cooperative parents. In addition, a vacation of no longer than two weeks with the noncustodial parent.

2.7 Children in Day Care. In families where a child has been in day care before the parental separation, the child may be able to tolerate more time with the noncustodial parent earlier because the child is more accustomed to separations from both parents. The noncustodial parent of a child under age five should not during his/her time place the child with a babysitter or day care provider. If the noncustodial parent cannot be with the child personally, the child should be returned to the custodial parent. Allowing the child to visit with relatives for short periods of time may be appropriate, if the relatives are not merely serving as babysitters. While a child is in day care, the noncustodial parent may remove the child to have parenting time, provided that suitable prior arrangements are made with both the custodial parent and the day care provider. This parenting time must also not jeopardize the provision of the day care by that provider. The noncustodial parent must be available to provide direct care and at least one day's notice is given to the custodial parent. The parent removing the child is either to take the child to the other parent at the regular pick up time, or see that the child is returned to day care prior to the pick up time. Parental responsibility for day care costs will remain the same.

2.8 Holidays and Summer. For toddlers and preschool-age children, when the parents celebrate the holiday in the same or a nearby community, the parents will alternate Christmas Eve and Christmas Day each year so that the children spend equal time with each parent during this holiday period. Other major holidays should also be divided between the parents. With children ages three to five, a vacation of up to two weeks of uninterrupted time in the summer upon thirty days advance written notice (by mail, email, or text message) is reasonable. Parents are encouraged to coordinate vacation plans.

3. NONCUSTODIAL PARENTING TIME FOR CHILDREN OVER AGE FIVE WHEN THERE IS SOLE CUSTODY OR PRIMARY PHYSICAL CUSTODY AND THE PARENTS RESIDE NO MORE THAN 200 MILES APART.

3.1 Weekends. Parenting time will consist of alternate weekends from Friday at 5:30 p.m. to Sunday at 7:00 p.m., or an equivalent period of time if the noncustodial parent is unavailable on weekends and the children do not miss school. The starting and ending times may change to fit the parents' schedules. In addition, if time and distance allow, the noncustodial parent may spend time on a regular schedule with the children once or twice per week for two or three hours, or have one midweek overnight time. In most cases, it is a positive experience for the children to have the noncustodial parent involved in taking the children to and from school, and it is recommended that the noncustodial parent extend the

alternating weekends by picking up the children from school on Friday and taking the children to school on Monday. All transportation for the midweek custodial periods is the responsibility of the parent exercising them.

3.2 Mother's Day — Father's Day. The children shall be with their mother each Mother's Day and with their father each Father's Day from 9:00 a.m. to 8:00 p.m. Conflicts between these special days and regular parenting time will be resolved under Paragraph 1.9.

3.3 Summer Vacation. The children will be with each parent for one-half of the school summer vacation. At the option of the noncustodial parent, the time may be consecutive or it may be split into two or more blocks of time. If the children go to summer school and it is impossible for the noncustodial parent to schedule this time other than during summer school, the noncustodial parent may elect to take the time when the children are in summer school and transport the children to the summer school sessions at the children's school or an equivalent summer school session in the noncustodial parent's community.

3.4 Winter (Christmas) Vacation. The children will spend with each parent one-half of the school winter vacation, a period that begins the evening the children are released from school and continues to the evening of the day before the children will return to school. If the parents cannot agree on the division of this period, the noncustodial parent will have the first half in even-numbered years. Holidays, such as Christmas, are extremely important times of shared enjoyment, family tradition, and meaning. Families living in the same or nearby communities must work out ways for the children to spend part of each important holiday at both homes. If the parents are unable to work out a shared arrangement for the Christmas/New Year holiday and they celebrate the holidays in the same or a nearby community, in those years when Christmas does not fall in a parent's week, the children will be with the other parent from 11:00 a.m. to 8:00 p.m. on Christmas Day.

3.5 Holiday Weekends. Parents will alternate the following holiday weekends: Martin Luther King, Jr. Day; President's Day; Easter; the 4th of July; Native Americans' Day; and Thanksgiving. Thanksgiving will begin on Wednesday evening and end on Sunday evening; Easter weekend will begin on Thursday evening and end on Sunday evening; Martin Luther King Jr. Day, President's Day, and Native Americans' Day weekends will begin on the preceding Friday evening and end on Monday evening; the 4th of July will begin the evening of July 3 at 5:00 p.m. and end the morning of July 5 at 10:00 a.m. Unless otherwise specified, holiday weekends begin at 5:30 p.m. and end at 7:00 p.m. on the designated days.

The noncustodial parent will have Memorial Day weekend and the custodial parent will have Labor Day weekend.

3.6 Children's Birthdays. As with holidays, a child's birthday will be alternated annually between the parents. If a child's birthday falls on a weekend, it will be celebrated with the noncustodial parent from 11:00 a.m. to 8:00 p.m. (or so much of the period as the noncustodial parent elects to use). In some instances, the parents may agree to share the child's birthday, with each parent spending a few hours with the child.

3.7 Parent's Birthdays. The children will spend the day with the parent on the parent's birthday, unless it interferes with the other parent's scheduled time during a vacation or a major holiday. If a parent's birthday falls on a holiday, that parent may elect to exercise parenting time on another day during that month, upon sufficient advance notice to the other parent.

3.8 Conflicts Between Regular and Holiday Weekends. When there is a conflict between a holiday weekend and the regularly scheduled weekend time with the parent, the holiday takes precedence. Unless mutually agreed, there will be no makeup parenting time in conflicts between holiday weekend and the regularly scheduled weekend time.

3.9 Parenting Time Before and During Summer Periods. The custodial parent will have the weekend before the beginning and the weekend after the end of the noncustodial parent's summer period, regardless of whose weekend it may be. Weekend time "missed" during the summer period will not be "made up." During the noncustodial parent's extended summer time with the children of more than three consecutive weeks, it will be the noncustodial parent's duty to arrange for a mutually convenient 48-hour continuous period of time for the custodial parent to spend with the children, unless impractical because of distance.

3.10 Notice of Canceled Time With the Children. Whenever possible, the noncustodial parent will give a minimum of three days notice of intent not to exercise all or part of the scheduled time with the children. When such notice is not reasonably possible, the maximum notice permitted by the circumstances, and the explanation, will be provided to the other parent. Custodial parents will give the same type of notice when events beyond their control make the cancellation or modification of the scheduled time with the noncustodial parent necessary. If the custodial parent cancels or modifies the noncustodial parent's time with the children because the children have a scheduling conflict, the noncustodial parent

will be given the opportunity to take the children to the scheduled event or appointment.

3.11 Pick Up and Return of Children. When the parents live in the same community, the responsibility for picking up and returning the children will be shared. Usually the parent who receives the children will handle the transportation. The person picking up or returning the children has an obligation to be punctual, to arrive at the agreed-upon time, not substantially earlier or later. Repeated, unjustified violations of this provision may subject the offender to court sanctions.

3.12 Additional Time With the Noncustodial Parent. The children's time with the noncustodial parent should be liberal and flexible. For many parents, these guidelines should be considered only a minimum direction for interaction with the children. These guidelines are not meant to foreclose the parents from agreeing to modify the Parenting Plan as they find reasonable and in the best interests of their children at any given time.

4. NONCUSTODIAL PARENTING TIME WITH CHILDREN OVER AGE FIVE WHEN PARENTS RESIDE MORE THAN 200 MILES APART.

4.1 Summer and Holidays. This parenting time will consist of all but three weeks of the school summer vacation period. It is recommended that the time start one week after school is out and end two weeks before school begins so that the child will be well prepared to recommence school. In addition, where distance and finances permit, on an alternating basis, the Thanksgiving break, school winter (Christmas) break, and spring break will be with the noncustodial parent.

4.2 Priority of Summer Time With Noncustodial Parent. Summer time with the noncustodial parent takes precedence over summer activities (such as sports) when the noncustodial parent's time cannot be reasonably scheduled around such events. Even so, the conscientious noncustodial parent will often be able to enroll the child in a similar activity in the noncustodial parent's community.

4.3 Notice. At least sixty (60) days written notice (by mail, email, or text message) must be given by the noncustodial parent of the date for commencing extended summer parenting time with the children so that the most efficient means of transportation may be obtained and the parents and the children may arrange their schedules. Failure to give the precise number of days notice does not entitle

the custodial parent the right to deny the noncustodial parent parenting time with the children.

4.4 Additional Time with the Noncustodial Parent. Where distance and finances permit, additional parenting time for the noncustodial parent, such as holiday weekends or special events, is encouraged. When the noncustodial parent is in the area where the children reside, or the children are in the area where the noncustodial parent resides, liberal time with the children must be allowed and because the noncustodial parent does not get weekly time with the children, the children can miss some school to spend time with the noncustodial parent, so long as it does not substantially impair the children's scholastic progress.

5. Shared Parenting Plan. South Dakota law allows parents to agree in writing to a detailed Shared Parenting Plan, which provides that the children will reside no less than one hundred eighty nights per calendar year in each parent's home, and that the parents will share the duties and responsibilities of parenting the children and the expenses of the children in proportion to their incomes. Such Shared Parenting Plan must be incorporated into the custody order. SDCL 25-7-6.27. A Shared Parenting Plan requires adaptable children and cooperative parents.

Approved by the South Dakota Supreme Court April 18, 2012. SDCL 25-4A-10.

Add as an additional note at the top of page 335, before “G. Joint Custody:”

Grandparents effort for “broader visitation” than that afforded by father is defeated, with grandparents being ordered to pay \$7,815 attorney fees to father. In *Beach v. Coisman*, 2012 S.D. 31, 814 N.W.2d 135, the facts show that the mother of twins died less than three years after their birth. Maternal grandparents were enjoying limited visitation rights as permitted by father but were displeased with limitations. Grandparents sued for "a broader visitation plan." The trial court sustained father's motion for judgment as a matter of law at the close of grandparents' case-in-chief and also awarded father attorney fees of \$7,815. The SD Supreme Court affirmed in a unanimous decision with opinion authored by Justice Zinter. The trial court had resolved the issues through the application of SDCL 25-4-52, South Dakota's "grandparents visitation" statute. On appeal the grandparents argued that their claim should have been resolved under SDCL 25-5-29, South Dakota's "Timmie's law." The SD Supreme Court held that grandparents lose under either statute because there did not overcome the father's "presumptive parental right to control the custody and visitation of his children" as recognized in the U.S. Supreme Court's *Troxel* decision and the SD Supreme Court's decision in *In re A.L.*, 2010 S.D. 33, 781 N.W.2d 482.

G. Joint Custody

Add the following as additional notes on page 346:

Report on 2014 Legislation: The matter of Joint Physical custody was addressed, with specific provisions enacted as SDCL §§ 25-4A-21 to 25-4A-27.

SDCL 25-4A-21. Joint physical custody--Consideration upon application--Findings. In any custody dispute between parents, upon application of either parent, the court shall consider granting joint physical custody of a minor child.

The court shall consider the factors set forth in § 25-4A-24, and shall make written findings of fact and conclusions of law regarding the best interests of the minor child, unless waived by both parties.

SDCL 25-4A-22. Rebuttable presumption upon finding of history of domestic abuse or assault. A finding by the court that a parent has a history of committing domestic abuse or has an assault conviction as defined in § 25-4-45.5, creates a rebuttable presumption that joint physical custody is not in the best interests of the child.

25-4A-23. Home study or custody evaluation--Mediation. Prior to ruling on a joint physical custody petition the court may require the parties to participate in a home study or a custody evaluation. Prior to the court ruling on a joint physical custody petition, either parent may request mediation pursuant to § 25-4-56.

In any case where the court orders the parties to participate in a home study, custody evaluation, or custody mediation, the court shall allocate the costs of the same between the parties.

SDCL 25-4A-24. Factors for consideration on request for joint physical custody. In considering a contested request for joint physical custody, in addition to the traditional factors for determining the best interests of a child, the court shall consider the following factors:

- (1) Whether each parent is a suitable physical custodian for the child;
- (2) Whether each parent has an appropriate dwelling to support physical custody of the child;
- (3) Whether the psychological and emotional needs and the development of the child will suffer due to lack of active contact with, and attention from, both parents if joint physical custody is not granted;
- (4) Whether one parent has denied, without just cause, the child the opportunity for continuing contact with the other parent. Facts supporting an application of the presumption in § 25-4-45.5 constitute just cause;
- (5) Whether the parents can show mutual respect for and effectively communicate with each other regarding the child's needs. When considering this factor, the court shall include a determination of the degree to which the parents are in general agreement about their approach to daily child rearing matters;
- (6) The extent to which both parents actively care for the child;
- (7) Whether each parent can support the other parent's relationship with the child. When considering this factor, the court shall include a determination of conflict between the parents, as joint physical custody requires substantial and regular interaction between the parents on a myriad of issues;
- (8) Whether the joint physical custody arrangement is in accord with the child's wishes or whether the child has strong opposition to joint physical custody, taking into consideration the child's age, maturity, and reason for the objection;
- (9) Whether a parent has intentionally alienated or interfered with the other parent's relationship with the child;
- (10) Whether one or both parents are opposed to joint physical custody. A parent's opposition to joint physical custody is not determinative in itself, but only one factor for the court to consider;
- (11) The geographic proximity of the parents;
- (12) Whether the safety of the child, other children, or the other parent will be jeopardized by an award of joint physical custody;
- (13) Whether a parent allows another person custody or control of, or unsupervised access to, a child after knowing the person is required to register or is on the sex offender registry as a sex offender under chapter 22-24B;
- (14) Whether a parent has attempted to influence a custody determination by alleging, falsely or without good cause, that the child or the sibling of the child has been subjected to physical or sexual abuse or abuse and neglect, as set forth in § 25-4-45.8.

SDCL 25-4A-25. Parental agreement for joint physical custody. If both parents agree to joint physical custody of a child, the court is not required to consider the factors set forth in § 25-4A-24.

SDCL 25-4A-27. Modification of existing orders. The enactment of §§ 25-4A-21 to 25-4A-27, inclusive, does not constitute a substantial change in circumstances justifying the modification of existing custody orders, but the provisions of §§ 25-4A-21 to 25-4A-27, inclusive, shall apply to modification proceedings which are otherwise properly before the court.

Action by the 2012 Legislature, signed into law. HB 1055 specifically authorizes “joint physical custody.” This legislation amends SDCL 25-5-7.1 by adding an additional sentence as shown here:

SDCL 25-5-7.1. Joint legal custody order--Factors for court's consideration--Joint physical custody. In any custody dispute between parents, the court may order joint legal custody so that both parents retain full parental rights and responsibilities with respect to their child and so that both parents must confer on, and participate in, major decisions affecting the welfare of the child. In ordering joint legal custody, the court may consider the expressed desires of the parents and may grant to one party the ultimate responsibility over specific aspects of the child's welfare or may divide those aspects between the parties based on the best interest of the child. If it appears to the court to be in the best interest of the child, the court may order, or the parties may agree, how any such responsibility shall be divided. Such areas of responsibility may include the child's primary physical residence, child care, education, extracurricular activities, medical and dental care, religious instruction, the child's use of motor vehicles, and any other responsibilities which the court finds unique to a particular family or in the best interest of the child. *If the court awards joint legal custody, it may also order joint physical custody in such proportions as are in the best interests of the child, notwithstanding the objection of either parent.*

(italicized sentence added by 2012 legislature.)

Report on 2011 Legislation: SB 178 refines and enhances joint custody protections for parents. This bill amends SDCL 25-5-7.1 so as to provide,

SDCL 25-5-7.1. Joint legal custody order--Factors for court's consideration--Joint physical custody. In any custody dispute between parents, the court may order joint legal custody so that both parents retain full parental rights and responsibilities with respect to their child and so that both parents must confer on, **and participate in,** major decisions affecting the welfare of the child. In ordering joint legal custody, the court may consider the expressed desires of the parents and may grant to one party the ultimate responsibility over specific aspects of the child's welfare or may divide those aspects between the parties based on the best interest of the child. If it appears to the

court to be in the best interest of the child, the court may order, or the parties may agree, how any such responsibility shall be divided. Such areas of responsibility may include **the child's** primary physical residence, child care, education, **extracurricular activities**, medical and dental care, **religious instruction**, **the child's use of motor vehicles**, and any other responsibilities which the court finds unique to a particular family or in the best interest of the child. (emphasis added to newly added language).

This legislation also creates a new section in SDCL 25-5 which provides

SDCL 25-5-7.6. Parent sharing custody to foster other parent's relationship with child. Each parent sharing joint legal custody of their child shall foster the other parent's relationship with the child.

Source: SL 2011, ch 131, § 2.

Father prevails in obtaining primary custody where “equal shared parenting arrangement” was “no longer workable.” The father in *Simunek v. (Simunek) Auwerter*, 2011 S.D. 56, 603 N.W.2d 835, sought primary custody in this modification proceeding which was brought shortly before the parties’ child entered kindergarten. The parties had been following an equal shared parenting arrangement, with mother designated as having primary physical custody. The trial court ruled in favor of father and the SD Supreme Court affirmed, observing that the trial “court’s findings and conclusions reflect a balanced and systematic application of the relevant factors governing child custody.” This unanimous decision by the Court is made by four justices, with neither Justice Wilbur nor Retired Justice Meierhenry participating. The opinion is authored by Justice Zinter.

Separation of Siblings. The transfer of custody is supported by the notion that siblings should not be separated and the fact the father has remarried and now has a son who is half-brother to child. ¶11 of the opinion addresses this issue as follows:

Mother argues that the court did not consider the totality of the circumstances and instead considered the separation of siblings to be controlling as a matter of law. We disagree. Concededly, the court found that separating Child and Half-Brother favored Father and that the separation of siblings was one of the few factors that was not equal for Mother and Father. But the court did not indicate that this factor was controlling to the exclusion of all others. The court’s review of the relevant factors spans several pages of trial transcript. The court did not disregard all other factors: it made findings on each relevant factor. The court took a balanced and systematic approach in applying the child custody factors..

Converting Equal Shared Parenting Arrangement to Sole Custody because “no longer workable.” This is discussed in ¶17 of the opinion as follows:

In the final analysis, this is one of those difficult cases where the court was forced to choose between two satisfactory parents. “Choosing between two satisfactory options [for child custody] falls within a judge’s discretion.” [citation omitted] ... Thus, the court was forced to choose between two fit parents who loved and supported Child. Ultimately, Child was going to start school, the parents lived in different communities, and the equal shared parenting arrangement was no longer workable. The court was forced to make a choice, and it did not abuse its discretion in choosing one of these two satisfactory options for primary physical custody.

IX. Child Support

A. The Obligation and Its Boundaries

1. Initiation of the Obligation

a. Children of Marriages

Add as an additional “note” at the bottom of page 347:

Neither separate living arrangements for H & W nor H’s absence due to military obligations constituted “family dissociation” under SDCL 25-7-6.1 thereby triggering the automatic imposition of child support obligation. In *Huffaker v. Huffaker*, 2012 S.D. 81, W appealed from adverse rulings in a divorce proceeding. W complained that the trial court did not implement the “automatic” child support assessment authorized under SDCL 25-7-6.1 in regard to an alleged arrearage which wife claims for a 21 month period prior to the court’s determination of child support. Husband had been paying \$1,000 per month during this time but child support was eventually determined to be \$1,310 per month. Wife sought 21 months of the difference of \$310. The South Dakota Supreme Court rejected W’s argument stating, “... the fact that [H] and [W] had separate living arrangements does not automatically establish that [H] was continually absent from the home.” ¶ 29. The opinion also states that H’s absence from the home “did not constitute ‘family dissociation’ due to a ‘substantial severance of marital and family ties and responsibilities.’” ¶ 29. Furthermore, the cause for a portion of H’s absence from the marital home was “because he was fulfilling his obligations to the military” and such a separation does not constitute “family dissociation.” This is a unanimous decision with opinion authored by Chief Justice Gilbertson.

A. The Obligation and Its Boundaries

3. Termination of the Obligation

Add as an additional note under “LUMP SUM AWARDS – A PROBLEM AREA FOR OBLIGORS” on **page 357**:

Lump Sum Support previously paid not available as an “Overpayment Offset” in regard to unemancipated youngest child. The situation in *Heumiller v. Heumiller*, 2012 S.D. 68, is one which has been problematic in South Dakota – the non-custodial parent pays child support for three children at \$ X per month for all three children and that obligation remains the obligation even when the older two children become emancipated. In this case, father (non-custodial) parent did pay the full \$ X per month for a period of time after the two older children became emancipated. Subsequently, however, he requested an offset as to his obligation for the youngest child – seeking an offset for what he considered to be an “overpayment.” The referee and trial court refused to allow the offset, holding that to do so would constitute an impermissible retroactive modification of child support. The SD Supreme Court affirmed and awarded mother appellate attorney fees of \$2,833.38. The Court’s opinion is authored by Justice Konenkamp. Justice Zinter filed a concurring opinion.

Add as an additional note case on **page 361**, before “PARENTAL SUPPORT:”

Agreement to pay for post-secondary education includes 5th year of college and 1st year of grad school. *Roseth v. Roseth*, 2013 S.D. 27: At the time of the divorce the parties agreed to jointly pay for post-high school education for their children. The youngest child took 5 years to complete his undergraduate degree and was then accepted into a Master’s Degree Program (two years). The agreement extended the parties’ obligation “until completion of said course of study or age 25, whichever first occurs.” H contested that he had an obligation to pay his share for the 5th year of college and the 1st year of graduate school. The trial court “found that the parties’ agreement was unambiguous, and ordered [H] to pay.” The SD Supreme Court affirmed in a unanimous decision with opinion authored by Chief Justice Gilbertson.

B. Child Support Guidelines

Add at the bottom of page 372:

THE 2012 CHANGES

The 2012 Child Support Commission filed its report in December, 2012. The 2013 Legislature followed its recommendations, introduced as HB 1021, as follows:

Disestablishment of paternity and other adjustments concerning paternity determinations, and presumptions. The most significant and substantive accomplishment of the 2012 Child Support Commission is the authorization of “disestablishment” of paternity proceeding and related changes. The following recommendations have been implemented by the 2013 Legislature:

“Disestablishment of paternity” proceeding authorized in certain situations where supported by genetic test results. The legislature has created a new section to be added to SDCL 25-8 which reads as follows:

SDCL 25-8-64. Setting aside presumption or prior determination of paternity based on genetic test results--Factors in determining best interest of the child. The court may at any time before the child turns eighteen, find that a presumed or legally determined father is not the biological father of a child, based on genetic test results that either exclude the presumed or legally determined father as the biological father of the child or establish another person as the biological father of the child by the standards set in § 25-8-58. The court may under such circumstances set aside a presumption or prior determination of paternity if it finds that setting aside a presumption or prior determination of paternity is in the best interest of the child. The court may but is not required to consider any of the following factors in determining the best interests of the child:

- (1) the length of time between the proceeding to adjudicate parentage and the time that the presumed or legally determined father was placed on notice that he might not be the genetic father;
- (2) the length of time during which the presumed or legally determined father has assumed the role of father of the child;
- (3) the facts surrounding the presumed or legally determined father’s discovery of his possible nonpaternity;
- (4) the nature of the relationship between the child and the presumed or legally determined father;
- (5) the age of the child;
- (6) the harm or benefit that may result to the child if the presumed or legally determined paternity is successfully disproved;

- (7) the nature of the relationship between the child and any presumed or legally determined father;
- (8) the extent to which the passage of time reduces the chances of establishing the paternity of another man and a child-support obligation in favor of the child; and
- (9) any additional factors deemed by the court to be relevant to its determination of the best interest of the child.

Corresponding changes in SDCL 25-8. The following sections of existing SDCL 25-8 were changed so as to accommodate the new provision relating to “disestablishment of paternity” proceedings:

SDCL 25-8-7.1. Court ordered testing for paternity--Filing of results. In any action or proceeding in which the parentage of a child is at issue, including disestablishment proceedings pursuant to § 25-8-64, upon motion of the court, the department, or any of the interested parties, the court shall, for good cause shown, order the mother, the child, or any alleged father to submit to an examination of blood, tissue, or other bodily substances for the purpose of testing any genetic systems that are generally accepted within the scientific community for the conclusive determination of paternity probability. The results of the tests, together with the opinions and conclusions of the testing laboratory, shall be filed with the court. Upon written agreement of the mother and any presumed or alleged father, tests may be conducted prior to filing of an action. If the action is then filed, the test results shall be filed with the court and admitted into evidence as provided in § 25-8-7.3.

SDCL 25-8-9. Time for bringing proceedings. Proceedings to establish or disestablish paternity and enforce the obligation of the father may be brought at any time before the eighteenth birthday of the child.

SDCL 25-8-57. Rebuttable presumption of legitimacy. Any child born in wedlock, or born within ten months after dissolution of the marriage, is presumed legitimate to that marriage even if the marriage is subsequently declared to be null and void, or subsequently dissolved by divorce. This rebuttable presumption of legitimacy can only be disputed by the husband or wife, or a descendant of one or both of them, or a potential biological father of the child. The potential biological father has standing to file an action to rebut this presumption prior to obtaining genetic test results. The potential biological father cannot rebut the presumption without genetic test results meeting the requirements of § 25-8-58 establishing that he is the biological father of the child.
This presumption may be specifically rebutted pursuant to § 25-8-64.

Corresponding modification in SDCL 25-7. A new section in SDCL 25-7 has been created so as to accommodate the new provision relating to “disestablishment of

paternity” proceedings *vis a vis* the child support obligation. The new section provides as follows:

SDCL 25-7-7.7. Termination of child support order upon disestablishment of paternity. When a presumed or legally determined father has a child support order and disestablishes his paternity pursuant to § 25-8-64, the child support order is automatically terminated from entry of the disestablishment order. The disestablished father continues to be responsible for any child support that accrued prior to the date of entry of the disestablishment order. However, nothing herein precludes the disestablished father from bringing a separate cause of action for recovery of previously ordered child support.

Parent’s Medical Insurance Cost clarified. SDCL 25-7-6.16 was amended so as to clarify that the medical insurance cost is that parent’s prorated share of the child’s medical insurance cost, not the total cost of the child’s medical insurance.

Required utilization of “annual pay standard” relaxed if “good cause” exists. SDCL 25-7-6.26 was amended so as to permit the assessment of a child support obligation in an amount lower than the amount determined by using “annual pay standard” where good cause has been shown in the situation where a parent fails to furnish financial information. The amended language is as follows:

SDCL 25-7-6.26. Effect of failure to furnish financial information. If a parent in a child support establishment or modification proceeding fails to furnish income or other financial information, the parent is in default, and that parent's income for purposes of determining child support shall be computed at a rate not less than the most recent annual pay standard as reported by the Department of Labor and Regulation unless good cause is shown to set support at a lower amount.

Prohibition on retroactive modification clarified and strengthened. SDCL 25-7-7.3 was clarified and strengthened so as to provide that any previously ordered support payments that have become due, whether paid or unpaid, cannot be modified for periods prior to the date of notice of the modification hearing as follows:

SDCL 25-7-7.3 Past due support payments not subject to modification--Exception. Any ~~past due~~ previously ordered support payments that have become due, whether paid or unpaid, are not subject to modification by a court or administrative entity of this state, except those accruing in any period in which there is pending a petition for modification of the support obligation, but only from the date that notice of hearing of the petition has been given to the obligee, the obligor, and any other parties having an interest in such matter.

Court is now required to “address” child support arrearages when parental rights are terminated. Three statutes have been amended so as to require the court to “address” child support arrearages when terminating parental rights. Those amendments are shown with underlined language as follows.

SDCL 25-5A-18. Order terminating parental relations--Consent to adoption. Upon proof of the notice required by § 25-5A-9 and personal service as required by §§ 25-5A-11 and 25-5A-12 to all parents and putative fathers of a child, if, after the court determines that the parents have consented or have waived consent pursuant to § 25-6-4, the court finds that the termination of parental rights and the transfer of parental rights to be in the best interests of the child, and finds that the petitioner or petitioners are fully aware of the purpose of the proceedings and the consequences of their act, the court shall make an order terminating all parental rights and obligations in the parent or parents in which they have existed and releasing the child from all legal obligations to the parents, even though the proceeding for termination is brought by only one parent. The court shall also order that the parental rights are transferred to some other person or persons, or authorized agency as may, in the opinion of the court, be best qualified to receive them. The order may contain the power by the person or persons or authorized agency to consent to the adoption of the child, as provided for in § 25-6-12, without further notice to the child's parent or parents or any other person having parental rights over the child. The court may specifically terminate the parental rights of all parents and putative fathers regardless of whether they are personally present in court except as required in § 25-5A-14. Any existing child support arrearages shall be addressed by the court in the order terminating parental rights.

SDCL 25-6-17. Rights and duties of natural parents terminated on adoption--Exceptions. The natural parents of an adopted child are from the time of the adoption, relieved of all parental duties towards, and of all responsibility for the child so adopted, and have no right over it. Adoption of a child shall be final and unconditional except as otherwise provided by § 25-6-21. The natural parents of an adopted child shall retain no rights or privileges to have visitation or other post-adoption contact with the child, except in cases where a natural parent consents to the adoption of a child by the child's stepfather or stepmother who is the present spouse of the natural parent or in cases of voluntary termination where there is a written pre-adoption agreement between the natural parent or parents and the adoptive parents. Any existing child support arrearages shall be addressed by the court in the order terminating parental rights. The South Dakota Supreme Court decision, *People in Interest of S.A.H.*, 537 N.W.2d 1 (S.D. 1995), is abrogated by the South Dakota Legislature in so far as the case gave circuit courts the option to order an open adoption or post-termination visitation. Post-adoption visitation is an extraordinary remedy and may be exercised only by the adoptive parents when in the child's best interests. This section does not apply to pre-adoption agreements entered into before July 1, 1997.

SDCL 26-8A-27. Final decree of disposition terminating all parental rights of one or both parents--Custody of child. On completion of a final dispositional hearing regarding a child adjudicated to be abused or neglected, the court may enter a final decree of disposition terminating all parental rights of one or both parents of the child if the court finds, by clear and convincing evidence, that the least restrictive alternative available commensurate with the best interests of the child with due regard for the rights of the parents, the public and the state so requires. The court may enter a decree terminating parental rights if the court finds, by clear and convincing evidence, that the parents have abandoned the child for at least six months and during this period the parents have not manifested to the child or to the physical custodian or caretaker of the child a firm intention to resume physical custody of the child and to make suitable arrangements for the care of the child. If the court decides to terminate parental rights, any existing child support arrearages shall be addressed by the court in the order terminating those parental rights.

Upon the entry of the final decree of disposition terminating the parental rights of both parents or of the surviving parent, the court shall vest the Department of Social Services with the custody and guardianship of the person of the child for the purpose of placing the child for adoption and authorizing appropriate personnel of the department to consent to adoption of the child without need for any notice or consent of any parent of the child. The final decree terminating parental rights is final and unconditional. The natural parents retain no post-termination rights or privileges including post-termination visitation except for any final visitation allowed by the department.

Upon the entry of a final decree of disposition terminating the parental rights of one parent, the court may leave the child in the custody of the remaining parent and end the proceedings.

Other Child Support Commission Changes Recommended and Adopted:

Replace “mother” with “custodian,” “father” with “noncustodial parent” and “spouse” with “custodian.” These substitutions are recommended in SDCL 25-7A-1, SDCL 25-7A-3, SDCL 25-7A-4, SDCL 25-7A-5, SDCL 25-7A-21.1, and SDCL 25-8-5.

“Noncustodial parent” is now defined in SDCL 25-7A-1 (9A) as “the parent who does not have primary care, custody, or control of the child, and has an obligation to pay child support.” [NOTE: This definition which evolved through House Committee Amendment, is the only variation made by the Legislature in regard to the original recommendations of the Child Support Commission.]

Amend SDCL 25-7A-20 to clarify that DSS will enforce a spousal support obligation only if it is court-ordered, the department is also enforcing a child support obligation for the same spouse, and the spouse lives with the dependent child.

Amend the definition of “date of hire” in SDCL 25-7A-1 to comply with federal regulations.

Amend SDCL 25-7A-56.7, which establishes due process requirements in any subsequent child support enforcement actions, to clarify that it also applies to any subsequent child support modification actions.

Create two new sections in SDCL 25-7A that address due process protections in child support modification actions. One section requires each parent to notify the Division of Child Support of his or her current address, the name and address of the parent’s employer, and any address or employment changes. The other section provides that a child support referee may mail notices to the parent’s last known address on file with the Division.

Create two new sections in SDCL 25-7A that address discovery in referee proceedings. One section provides that the parties shall provide all required financial and legal documents at least five days prior to the hearing date. The other section provides that the parties may inspect and obtain copies of financial documents, that the information is confidential, and that the referee may charge copying fees not to exceed \$0.25 per page.

5. Application of the Guidelines -- Notes

Add as another case summary in **note 5, page 404**:

Trial court’s refusal to extrapolate affirmed in 3-2 ruling. In *Schieffer v. Schieffer*, 2013 S.D. 11, the trial court ordered H to pay child support in accordance with the highest amount on the grid for combined net monthly income of \$20,000, refusing to extrapolate. The SD Supreme Court affirmed. The Court’s decision is authored by Chief Justice David Gilbertson. Justices Konenkamp and Zinter dissented on the issue of child support, each writing a separate opinion. Justice Zinter’s opinion notes in ¶ 74 that, “The Schieffers’ income was nine times greater than the income used to determine the top scheduled amount.”

Add the following as additional **notes on page 409, before *Whalen v. Whalen***:

Inheritance is inappropriate consideration unless “child’s needs are not being met” through income. *Crawford v. Schulte*, 2013 S.D. 28: Custodial father sought to increase mother’s child support obligation. The referee and trial court did the *opposite* and reduced mother’s child support, relying on the fact “Father had received part of an inheritance and expected to receive the balance of that inheritance in the near future.” The SD Supreme Court reversed and remanded holding that consideration of inheritance (an asset) is permissible under

SDCL 25-7-6.5 only when the “child’s needs are not being met.” This decision is unanimous with opinion authored by Justice Zinter.

Action by the 2012 Legislature, signed into law. HB 1126 specifies “recipient payees” in the event of child support bond forfeiture. HB 1126 adds the following new section to SDCL 25-7:

25-7-16.1. Cash bond for nonsupport applied to child support arrearages.

Notwithstanding any provision of chapter 23A-43 to the contrary, any cash bond deposited with the court, whether or not personally posted by the defendant, to assure appearance of an individual charged with nonsupport of a child under § 25-7-15 or 25-7-16 or subject to civil proceedings to enforce child support obligations, may, at the discretion of the court, be ordered paid to the Department of Social Services or the support obligee and applied to child support arrearages either as a condition imposed by the court or as a result of the individual's failure to appear as required by the court.

Downward deviation of \$300 in child support affirmed. In February, 2010, the custodial mother in (*Meyerink*) *Linge v. Meyerink*, 2011 S.D. 78, 806 N.W.2d 245, sought an increase in father’s child support obligation of \$515/month for 2 children. The existing order had been in place since July, 2001. Father sought a downward deviation under SDCL 25-7-6.10(2), “... financial condition of either parent which would make the application of the schedule inequitable.” The referee and circuit court allowed a \$300 downward deviation, setting child support at \$449 per month which was \$66 less than the existing order. The SD Supreme Court affirmed in a unanimous decision, with opinion authored by Justice Zinter. Father’s wife suffers

“serious medical problems... [father] testified that his wife suffers from a severe condition that affects her immune system. This condition left her unable to work, and she currently receives Social Security disability benefits. The unreimbursed medical bills associated with the condition are substantial. They have caused [husband] to incur a significant and continuing accumulation of debt.”

Quoted material taken from ¶¶ 2-3 of opinion.

X. Division of Property

A. Introductory Comments

Add the following on page 428 under “NOTE (Concerning ‘Automatic’ Restraining Order)”:

Report on 2011 Legislation: SB 114 broadens the automatic TRO entered upon filing for divorce so as to prohibit changes to insurance coverage. The automatic restraining order authorized by SDCL 25-4-33.1 has been broadened by adding a new section (4).

25-4-33.1. Automatic temporary restraining order upon service. Upon the filing of a summons and complaint for divorce or separate maintenance by the plaintiff, and upon personal service of the summons and complaint on the defendant, a temporary restraining order shall be in effect against both parties until the final decree is entered, the complaint dismissed, or until further order of the court:

- (1) Restraining both parties from transferring, encumbering, concealing, or in any way dissipating or disposing of any marital assets, without the written consent of the other party or an order of the court, except as may be necessary in the usual course of business or for the necessities of life, and requiring each party to notify the other party of any proposed extraordinary expenditures and to account to the court for all extraordinary expenditures made after the temporary restraining order is in effect;
- (2) Restraining both parties from molesting or disturbing the peace of the other party;
- (3) Restraining both parties from removing any minor child of the parties from the state without the written consent of the other party or an order of the court; and
- (4) *Restraining both parties from making any changes to any insurance coverage for the parties or any child of the parties without the written consent of the other party or an order of the court unless the change under the applicable insurance coverage increases the benefits, adds additional property, persons, or perils to be covered, or is required by the insurer.*

The provisions of the temporary restraining order shall be printed upon the summons and shall become an order of the court upon fulfillment of the requirements of service. However, nothing in this section precludes either party from applying to the court for any further relief or for the modification or revocation of any order.

(italicized language added by 2011 legislature.)

B. The “Marital-Separate” Distinction

Add the following to **note 11, pp. 438-439**:

Reversible error not to make findings regarding property. The decision in *Farlee v. Farlee*, 2012 S.D. 21, 812 N.W.2d 501, a divorce proceeding, reverses and remands because the trial court failed to assign a value to items of property and also because the trial court “did not classify all the disputed property as marital or nonmarital.” The decision is unanimous with opinion by Justice Zinter.

Add as an **additional note on page 441**:

Mother-in-law’s action to regain title to deeded land rejected, with mother-in-law narrowly escaping assessment of attorney fee award in favor of H. The dispute in *Johnson v. Miller*, 2012 S.D. 61, involves a suit by W’s mother against H seeking restoration of title to real estate which she had deeded to H & W as joint tenants.

H & W were married in 1992. W’s mother deeded 720 acres of farm land to H & W as joint tenants in 2008. W sued for divorce approximately 19 months later. This lawsuit is separate from the divorce action. Here, we find that W’s mother sued H alleging that she was “fraudulently induced to deed the land” to H & W. W’s mother “contended that [H] made promises and statements that he would continue to farm the land and raise his family there. [She] also asserted that [H’s] alleged promise to continue to be [W’s] husband was consideration for transferring the land to him. [Her] request for relief was to have the land’s ownership restored to her and any other equitable remedy the court believed appropriate.” ¶ 5.

The trial court granted summary judgment for H. The trial court also denied H’s request for an attorney fee award which he sought under SDCL 15-17-51 on the ground that the action filed by W’s mother was frivolous. On appeal, the SD Supreme Court affirmed the lower court’s rulings.

All five justices agreed that H was properly granted summary judgment on the suit brought by W’s mother. Three justices affirm the lower court’s denial of attorney fees to H. Chief Justice Gilbertson is the author of the Court’s opinion and Justice Severson agrees fully with Chief Justice Gilbertson’s opinion. Justice Konenkamp concurs in the affirmance of the lower court’s denial of attorney fees but writes a separate concurring opinion. Justice Zinter dissented, with Justice Wilbur joining in. Justice Zinter’s dissent states,

Because [W’s mother’s] undisputed testimony clearly reflects that at the time she filed her pleadings she possessed absolutely no factual basis for her claim of fraud, and because not one of [her] motives or purposes for suing related to fraud, I would reverse and remand for the award of a reasonable attorney’s fee.

E. Retirement Plans

Add as a new note, in **middle of page 473**:

Absent special circumstances, retirement plan properly valued as of date of divorce. The trial court in *Pieper v. Pieper*, 2013 S.D. 98, divided Wife's retirement plan as of the date of the divorce decree, with the evidence showing that it was worth \$12,413.14 when the divorce began, but had accumulated to a value of \$31,576.84 as of the date the divorce was granted. The trial court awarded Husband 50% of the higher value, fixed as of the date of the decree. The SD Supreme Court affirms on this issue and holds, in ¶ 42:

In divorce proceedings, the date of valuation of the marital estate is generally the date of the granting of the divorce. However, a different date may be used if special circumstances are present.

In making this pronouncement the Court relies upon *Duran v. Duran*, 2003 S.D. 15, *Geraets v. Geraets*, 1996 S.D. 119, and *Schumaker v. Schumaker*, 439 N.W.2d 815, 816 (S.D. 1989). The SD Supreme Court also notes,

The circuit court found no special circumstances in this case that would warrant valuing the pension on another date.

This decision is unanimous with opinion authored by Justice Severson. Circuit Judge Eckrich sat on this case, in lieu of Justice Wilbur.

F. The Problem of “Omitted Assets”

Add the following as additional notes, before *Moller v. Moller*, on **p. 486**:

Omitted Assets Legislation Enacted. The 2013 South Dakota Legislature enactment “omitted assets” legislation which gives direction to the courts in regard to the matter of assets which are omitted from the division of property in a divorce decree. New provisions have been added to SDCL 25-4 as SDCL §§ 25-4-75 to 25-4-83. These new provisions provide as follows:

SDCL 25-4-75. Motion to reopen case to divide assets omitted from property division.

Any court that has entered an original decree of marital annulment, dissolution, or legal separation and determined a division of the property shall reopen the case upon the motion of either party to the original decree if the moving party alleges all of the following regarding any assets belonging to either or both of the parties:

- (1) The assets existed at the time of the entry of the decree;
- (2) The assets were not encompassed by the original decree; and
- (3) The assets are currently more than de minimus assets.

Source: SL 2013, ch 118, § 1.

25-4-76. Equitable division of inadvertently omitted assets. If the court finds the assets were inadvertently omitted from the division of property, the court shall make an equitable division of the omitted assets. The court shall make an equitable division of the omitted assets, whether the titles to the assets are in the name of the husband or the wife. The court shall consider equity, the circumstances of the parties at the time of the original decree, and the circumstances of the parties when a motion for omitted assets is filed.

Source: SL 2013, ch 118, § 2.

25-4-77. Remedies for intentional concealment of omitted assets. If the court finds the omitted assets were intentionally concealed by the nonmoving party or the nonmoving party's agent, the court may order an equitable division of the omitted assets' appreciated value, a forfeiture of the omitted assets to the moving party, or any other appropriate distribution. In addition, the court may award either compensatory damages or punitive damages, or both, to the moving party.

Source: SL 2013, ch 118, § 3.

25-4-78. Attorneys fees for motion for omitted assets. The court may award attorney fees for a motion for inadvertently omitted assets filed pursuant to §§ 25-4-75 to 25-4-83, inclusive. The court shall award attorney fees to the moving party if the court finds the omitted assets were intentionally concealed by the nonmoving party or the nonmoving party's agent.

Source: SL 2013, ch 118, § 4.

25-4-79. Jurisdiction over motions for omitted assets when court of this state entered original decree. Any court of this state that has entered an original decree of marital annulment, dissolution, or legal separation and determined the division of property has exclusive, continuing jurisdiction over the subsequent motions for omitted assets unless the court that entered the original decree determines a court of another state is a more convenient forum.

Source: SL 2013, ch 118, § 5.

25-4-80. Jurisdiction over motions for omitted assets when court of another state entered original decree. A court of this state may adjudicate a motion for omitted assets when a court of another state entered the original decree of marital annulment, dissolution, or legal separation and determined the division of property only if the court of the other state that entered the original decree determines it does not have exclusive, continuing jurisdiction or determines a court of this state is a more convenient forum. However, if the omitted asset is real property that lies in this state, a court of this state may adjudicate a motion for omitted assets regardless of whether a court of another state entered the original decree.

Source: SL 2013, ch 118, § 6.

25-4-81. Time for filing motion for inadvertently omitted assets. A motion for omitted assets alleging inadvertent omission of assets must be filed within two years after the date of discovery of the omission, but no later than three years after the entry of the original decree.

Source: SL 2013, ch 118, § 7.

25-4-82. Time for filing motion for intentional concealment of assets. A motion for omitted assets alleging intentional concealment of assets must be filed within two years after the date of discovery of the omission, but no later than ten years after the entry of the original decree.

Source: SL 2013, ch 118, § 8.

25-4-83. Nonexclusive remedies. The provisions of §§ 25-4-75 to 25-4-82, inclusive, are not intended to be exclusive remedies and do not preclude the use of any other criminal or civil remedy.

Source: SL 2013, ch 118, § 9.

Reversible error not to make findings regarding property. The decision in *Farlee v. Farlee*, 2012 S.D. 21, 812 N.W.2d 501, a divorce proceeding, reverses and remands because the trial court failed to assign a value to items of property and also because the trial court “did not classify all the disputed property as marital or nonmarital.” The decision is unanimous with opinion by Justice Zinter.

Failure of trial court to address property division factors and failure to assign values to items of property held to be reversible error. In *Huffaker v. Huffaker*, 2012 S.D. 81, W appealed from adverse rulings in a divorce proceeding. The trial court’s division of property was reversed and remanded because it “failed to address the property distribution factors in its division of property and failed to assign values to the property.” ¶ 23. This is a unanimous decision with opinion authored by Chief Justice Gilbertson.

XII. Alimony

B. Traditional Alimony

Add as additional notes on p. 521, prior to “C. Hybrid Forms of Alimony:”

Court may consider obligor’s receipt of disability payments (both VA and Social Security) in making the alimony determination. Husband appeals the lower court’s ruling on alimony and attorney fees in *Urbaniak v. Urbaniak*, 2011 S.D. 83, 807 N.W.2d 621, a divorce proceeding. At the time of trial, husband was receiving \$984 per month in social security disability benefits and \$2,823 per month in VA disability benefits. Wife was awarded alimony of \$500 per month for 8 years, subject to termination on her death or remarriage. The trial court “considered [husband’s] receipt of disability benefits in making this decision, but noted that the alimony award was not to be construed as an attachment of any disability payments.” [NOTE: VA disability benefits may not be attached, levied upon or seized under federal law. Social Security disability benefits are also generally protected from attachment, levy, or seizure by federal law, but there is an exception for child support and alimony.] Wife was also awarded attorney fees and costs of \$5,792.12 by the trial court. The SD Supreme Court affirmed on all

issues. As to VA disability benefits, the SD Supreme Court joined “the majority of jurisdictions that have found that no federal law demonstrates a clear intent to prohibit state courts from considering VA disability benefits when deciding alimony.” ¶ 20. Wife was also awarded appellate attorney fees of \$3,000. This decision is unanimous with opinion authored by Justice Konenkamp.

Alimony of \$5,000 per month for life or until remarriage affirmed. In *Hagedorn v. Hagedorn*, 2012 S.D. 72, the trial court awarded wife alimony of \$5,000 for life or until remarriage and also awarded wife attorney fees of \$14,419.93. Husband appealed both rulings. The SD Supreme Court affirmed the trial court in both rulings in a unanimous decision with opinion authored by Justice Severson. As to the alimony award, the Court described, in ¶ 12, the “supporting factors” as follows:

Here, the trial court found a variety of factors to support the award of \$5,000 per month to Nicole. Nicole and Michael were married for 15 years, though they had a relationship for almost 20 years. The trial court also considered the earning power of both Nicole and Michael. The parties agreed that Michael would receive the family business. Michael’s earning capacity, including CBI and his work with Sprint/MBO Partners, is around \$19,000 per month. Nicole’s earning capacity is between \$10 and \$12 per hour. Nicole testified that, because of her age, she is unlikely to return to school to gain additional education or skills. In addition, the trial court found that both Nicole and Michael are in their early 40s and in good health and physical condition. The trial court also found that the parties lived a middle-class lifestyle and Nicole’s social standing or station in life would decline without alimony. Finally, the trial court granted the divorce to Nicole on the grounds of extreme cruelty and adultery, finding Michael at fault.

D. Termination

3. Death

Add as a note following the *Lodde* opinion on page 547

Reversal of both 1) increase in alimony and 2) extension beyond death of husband. In *Barton v. Barton*, 2012 S.D. 44, 815 N.W.2d 553, we learn that in 1993 the divorce court awarded W alimony in the amount of \$700 per month until her remarriage or death. In 2009, W sought to modify alimony claiming, “that she was forced to leave her employment to care for her aging parents... [and she] also claimed that her health was failing and that [H’s] financial position had steadily improved since the divorce.” The trial court ruled for W, increasing alimony to \$1,500 per month and also ordering that the alimony obligation extend beyond H’s death. The SD Supreme Court reversed, holding that the facts put forward by W were inadequate and “do not support a change in circumstances justifying modification of alimony.”

Additionally this opinion holds that it was error to require alimony be paid beyond H's death, upholding the established rule in SD that

[g]enerally, in the absence of an agreement between the spouses, the obligation to pay alimony ceases on the death of the obligor spouse.

This is a unanimous decision with opinion authored by Justice Severson. Circuit Judge Gering sat on this case in lieu of Justice Konenkamp.

XIV. Modification

A. Custody

1. Continuing Jurisdiction

Add the following as a **note at the bottom of page 569**:

SD Supreme Court Reviews Law Concerning When a Judge Must Disqualify Himself.

The opinion in *Marko v. Marko*, 2012 S.D. 54, 816 N.W.2d 820, addresses an appeal from a divorce proceeding. Three issues were presented: 1) the trial judge's duty to disqualify himself (or not) based upon a litigant's perception of bias and prejudice where this same judge had previously adjudicated another divorce case in which the father's current girlfriend was involved with the husband; 2) alleged abuse of discretion in restricting visitation rights to father so as to prohibit visitation while father's girlfriend is present; and 3) whether mother proved up "extreme cruelty" as a ground for divorce. The SD Supreme Court affirmed the lower court in a unanimous ruling with opinion by Justice Konenkamp. Paragraphs 17-30 provide an extensive review of the law relating to the issue of disqualification of a judge, concluding that the trial judge had acted appropriately. The matter of restricted visitation and the finding of extreme cruelty were both upheld as being supported by the evidence.

Add the following as a new note under "Relevant South Dakota Statutes," page 570:

Action by the 2012 Legislature, signed into law. HB 1046 provides protection to deployed serviceman's role as primary custodial parent during period of deployment. This bill amends SDCL 33-6-10 so as to provide as follows:

SDCL 33-6-10. Temporary delegation of guardianship during active service in armed forces--Modification of custody. A servicemember ordered to deployment, who is the physical custodian or guardian of a minor or incapacitated person, may delegate by a properly executed power of attorney to another person for a period of one year or less any of the powers regarding care and custody of the minor child or ward, except the power to consent to marriage or adoption of a minor ward. If the power of attorney

lapses prior to the servicemember's release from active duty, the power of attorney shall be automatically extended for an additional year unless the servicemember is sooner released from active duty. Neither the execution of such a power of attorney pursuant to this section, *nor the deployment itself, may be considered a factor in considering a substantial and material change of circumstances, nor a factor in a best interest of the child determination for purposes of permanent child custody modification proceedings.* There is hereby imposed an automatic stay of all proceedings seeking a permanent change in custody of a minor child where the parent with physical custody is a servicemember called to active duty for deployment. Such stay shall continue for the period of service due to deployment, unless waived in writing by the service member. Nothing in this section precludes a petition by the noncustodial parent to temporarily change physical custody, the best interests of the child remains determinative for such temporary custody determinations. *Any temporary order modifying physical custody of the child automatically terminates upon return of the servicemember from deployment and reverts back to the custody status or order in effect prior to the deployment. However, if upon return from the deployment either the servicemember or child exhibits a substantial and material change in circumstances which adversely affects the servicemember's ability to adequately care for the child, the best interests of the child shall be determinative. The temporary custody provisions of § 25-4A-11 do not apply to the temporary custody provisions of this section.*

(italicized language provided by 2012 legislature.)

D. Alimony

2. Criteria Warranting Modification

Add as an additional **note prior to “3. Prohibition...” on page 618:**

Reversal of both 1) increase in alimony and 2) extension beyond death of husband. In *Barton v. Barton*, 2012 S.D. 44, 815 N.W.2d 553, we learn that in 1993 the divorce court awarded W alimony in the amount of \$700 per month until her remarriage or death. In 2009, W sought to modify alimony claiming, “that she was forced to leave her employment to care for her aging parents... [and she] also claimed that her health was failing and that [H’s] financial position had steadily improved since the divorce.” The trial court ruled for W, increasing alimony to \$1,500 per month and also ordering that the alimony obligation extend beyond H’s death. The SD Supreme Court reversed, holding that the facts put forward by W were inadequate and “do not support a change in circumstances justifying modification of alimony.” Additionally this opinion holds that it was error to require alimony be paid beyond H’s death, upholding the established rule in SD that

[g]enerally, in the absence of an agreement between the spouses, the obligation to pay alimony ceases on the death of the obligor spouse.

This is a unanimous decision with opinion authored by Justice Severson. Circuit Judge Gering sat on this case in lieu of Justice Konenkamp.

E. Property

Add as an additional **note at the bottom of page 629:**

Trial court erred in not setting aside divorce decree at request of W who was unrepresented and who suffered physical and mental infirmities at the time she executed “marital termination agreement.” In *Geier v. Geier*, 2013 S.D. 24, W brought a rule 60(b) collateral attack on a divorce decree filed on September 12, 2011. Wife suffers from multiple sclerosis, dementia, cognitive defects, anxiety and depression. Shortly after the divorce Wife was hospitalized and then transitioned into a long-term care nursing facility. H admits that the “stated purpose of the divorce was to help [W] qualify for Medicaid and to protect his assets from depletion.” W, acting through her sister who was appointed guardian and conservator, filed a motion to set aside the divorce decree, under Rule 60(b), on January 23, 2012. The trial court denied the motion. The SD Supreme Court reversed, holding that W “demonstrated exceptional circumstances constituting excusable neglect and a probable meritorious defense mandating relief from the final judgment.” This decision is unanimous with opinion authored by Justice Wilbur.

XV. Enforcement

A. Contempt

3. Visitation Rights

Add the following as additional note on page 655, following note 6:

Report on 2011 Legislation: SB 12 establishes a Visitation Grant Advisory Group. Since 1997 DSS has been applying for federal grant money to facilitate visitation. This money, usually \$100,000 per year, has been administered by a Visitation Task Force established under the Unified Judicial System. DSS applies for the federal money but UJS approves use of funds. This legislation vests DSS with full administration of the funds through this new Visitation Grant Advisory Group. This legislation transfers the administration of funds from UJS to DSS. The Commission will consist of 9 members, three of whom are to be circuit judges appointed by the SD Supreme Court Chief Justice, 2 family law attorneys appointed by the Governor, 2 at

large members appointed by the Governor, 2 legislators with one appointed by the Speaker of the House and one appointed by the President Pro Tempore of the Senate.

B. Wage Assignments, Professional Licenses, etc.

Add the following as a new note at the top of page 657:

Action by the 2012 Legislature, signed into law. HB 1126 specifies “recipient payees” in the event of child support bond forfeiture. HB 1126 adds the following new section to SDCL 25-7:

25-7-16.1. Cash bond for nonsupport applied to child support arrearages.

Notwithstanding any provision of chapter 23A-43 to the contrary, any cash bond deposited with the court, whether or not personally posted by the defendant, to assure appearance of an individual charged with nonsupport of a child under § 25-7-15 or 25-7-16 or subject to civil proceedings to enforce child support obligations, may, at the discretion of the court, be ordered paid to the Department of Social Services or the support obligee and applied to child support arrearages either as a condition imposed by the court or as a result of the individual's failure to appear as required by the court.

D. Defenses

3. Limitations

Add at the bottom of page 662:

Twenty Year Statute of Limitations for Enforcement of Divorce Decree Not Applicable for W’s Mother who is simply Third Party Creditor. In *Wichman v. Shabino*, 2014 S.D. 45, H & W borrowed \$15,000 from W's mother to be used as down payment for purchase of family home. H was awarded home and given responsibility to pay the debt to W's mother. Nine years later W's mother brought suit against H for "breach of contract, unjust enrichment and enforcement of divorce decree." Trial court ruled against W's mother on the basis of the statute of limitations. (Trial court did award W's mother seven installments of the loan -- installments that would have come due within six years before commencement of suit, plus pre-judgment interest.) The SD Supreme Court affirmed in a unanimous decision with opinion authored by Justice Konenkamp. The Court recognizes that the statute of limitations for breach of contract is 6 years, while the statute of limitations for enforcement of a divorce decree is 20 years. SDCL 15-2-13 & SDCL 15-2-6. Despite the fact W's mother added W as a co-plaintiff after suit was filed, this action was simply an action by a "third-party creditor" and, as such, W's mother "can [not] use a divorce decree to extend a statute of limitations period for a pre-existing debt obligation where that obligation is not specifically incorporated into the decree." ¶ 16. H appeared pro se at both the trial level and on appeal.

D. Defenses

4. Estoppel and Laches.

Add the following as an additional case, following “Disfavored Defenses” on page 667:

No protection for child support obligor in arguments premised upon “laches” and “judicial estoppel.” In *Webb v. Webb*, 2012 S.D. 14, 810 N.W.2d 443, the SD Supreme Court affirmed a child support judgment for arrearages in the amount of \$71,805.19 against the father who appeared pro se in both the lower court in the appellate proceeding. The unpaid arrearages, as of the child’s 18th birthday, amounted to \$36,917.56. Interest on the arrearages brought the amount to \$71,805.19. Both the lower court and the SD Supreme Court rejected father’s arguments based upon laches (because father could not establish prejudice) and upon judicial estoppel due to mother’s failure to list child support as an asset in her bankruptcy proceeding. This is a unanimous *per curiam* opinion by the Court.

E. Criminal Prosecution

1. Non-Support – Cruelty to Minor

Add the following as additional notes on the top of page 675:

Reasonable Force through Corporal Punishment Rejected as Defense in Conviction for Aggravated Child Abuse. The SD Supreme Court affirmed the Defendant’s conviction for aggravated child abuse in *State v. Morgan*, 2012 S.D. 87. The jury rejected Defendants asserted defense of reasonable force through corporal punishment and the Court found that there was sufficient evidence to support the verdict. This decision is unanimous with opinion authored by Justice Severson.

Report on 2011 Legislation: SB 14 requires mandatory reporting of elder abuse. This legislation adds a new section to SDCL 22-46 and it requires mandatory reporting by designated health care professionals and certain other individuals of suspected elder abuse or abuse of a disabled person. Other individuals include law enforcement personnel and staff members of nursing homes, assisted living facilities, etc. These new provisions are found at SDCL 22-46-9, SDCL 22-46-10, and SDCL 22-46-11.

XVI. Termination of Parental Rights

C. Adoption

Add the following as new notes on page 696:

Step parent adoption affirmed, notwithstanding mother's deliberate attempts to conceal child. In *Matter of Adoption of Z.N.F.*, 2013 S.D. 97, the trial court permitted a step-parent adoption, finding that consent of the child's father was not required because of the factors found in SDCL 25-6-4 (2), (3), and (4). This decision affirms, notwithstanding the fact mother had deliberately attempted to conceal the child from the father. This decision is unanimous with opinion authored by Justice Severson. The concluding paragraph, ¶ 39, of the opinion states,

Under a different set of facts, Mother's deliberate attempts to conceal Z.N.F. from Father would likely excuse his failure to maintain contact with his son. We must reiterate that we do not condone Mother's attempts to deny Father's visitation with his son. However, Mother's obstacles do not excuse Father's failure to attempt to make contact with Z.N.F., nor do the obstacles excuse Father's willful failure to pay child support.

Failure of Trial Court to inquire as to whether "any promises" were made to mother was insufficient basis to set aside voluntary termination. Step-parent adoption upheld in *IN RE: IBANEZ*, 2013 S.D. 45. Mother of three minor children sought, "to set aside her voluntary termination of parental rights" on the basis of an "alleged 'fraud upon the court' because she was 'secretly paid monetary consideration' and given 'unenforceable secret promises' of continued visitation with her children, [none] of which were disclosed in the step-parent adoption proceedings." The step-parent adoption proceeding took place in front of Judge Tiede who examined the mother under oath. Subsequently Mother encountered difficulties in gaining access to the children. Mother filed this action to set aside the judgment terminating her parental rights 1 year later, with this action being assigned to Judge Caldwell. After hearing, Judge Caldwell found that Mother failed to satisfy the "exceptional circumstances" burden of Rule 60(b) necessary to succeed on a collateral attack. Mother alleged, *inter alia*, that Judge Tiede's examination did not satisfy the requirements of SDCL 25-5A-16 because his examination failed to address "promises" made to mother. The Supreme Court observed, "Judge Tiede conducted a full inquiry on Jessica's motivation for terminating her parental rights, including asking her about threats, but he did not inquire about promises." Nonetheless, the SD Supreme Court affirmed Judge Caldwell's decision noting that "Relief under SDCL 15-6-60(b) is extraordinary, warranted only in exceptional circumstances" and that "judgments of adoption should be particularly sacrosanct: children and adoptive parents need and deserve permanence." This decision is unanimous with opinion authored by Justice Konenkamp. With respect to the requirement of "full and complete inquiry" under SDCL 25-5A-16, the opinion provides guidance in footnote 8 and accompanying text. (NOTE: The Ibanez case was orally argued at

the law school on March 19, 2013, and was one of the oral arguments for which Prof. Baron required attendance.)

Action by the 2012 Legislature, signed into law. HB 1052 alleviates need for personal appearance in court in some situations. HB 1052 amends SDCL 25-6-12 so as to allow “other means of appearance as may be allowed by the court” other than a personal appearance court for the person adopting a child, the child and any person whose consent is necessary for the adoption. Testimony in support of this legislation specifically referenced utilization of “video conferencing” and noted that this bill would be especially beneficial to situations involving deployed service members. The language of the new legislation, however, is not restricted to video conferencing, nor is the language restricted to situations involving deployed service members.

Action by the 2012 Legislature, signed into law. HB 1266 reduces the two-year time period to one-year for curing and validating adoption proceedings, with ICWA cases excepted. HB 1266 amends SDCL 25-6-21 so as to reduce the period of time necessary to cure and validate certain adoption proceedings from 2 years to 1 year, except for cases governed by ICWA. SDCL 25-6-21 now read as follows

SDCL 25-6-21. Care of past irregularities in proceedings. Except in any case involving fraud or any case controlled by the Indian Child Welfare Act, (25 U.S.C. §§ 1901 to 1963, inclusive), as amended to January 1, 2012, any proceeding for the adoption of a child commenced under chapter 25-6 shall be in all things legalized, cured, and validated one year after the proceeding is finalized. If any person has a claim or right arising from any adoption proceeding, that person shall initiate any action to enforce such right or claim within one year of the date when the proceeding is finalized unless a two year statute of limitations is imposed by the Indian Child Welfare Act, (25 U.S.C. §§ 1901 to 1963, inclusive), as amended to January 1, 2012.

D. Abuse & Neglect Proceedings

Add the following as new notes on page 708:

Action by the 2012 Legislature, signed into law. SB 154 expands the categories of person required to report child abuse. SB 154 amends SDCL 26-8A-3 so as to expand the categories of persons required to report child abuse. The amended statute now provides,

26-8A-3. Any physician, dentist, doctor of osteopathy, chiropractor, optometrist, mental health professional or counselor, podiatrist, psychologist, religious healing practitioner, social worker, hospital intern or resident, parole or court services officer, law enforcement officer, teacher, school counselor, school official, nurse, licensed or registered child welfare provider, employee or volunteer of a domestic abuse shelter, *employee or volunteer of a child advocacy organization or child welfare service*

provider, chemical dependency counselor, coroner, or any safety-sensitive position as defined in subdivision 23-3-64(2), who has reasonable cause to suspect that a child under the age of eighteen has been abused or neglected as defined in § 26-8A-2 shall report that information in accordance with §§ 26-8A-6, 26-8A-7, and 26-8A-8. Any person who intentionally fails to make the required report is guilty of a Class 1 misdemeanor. Any person who knows or has reason to suspect that a child has been abused or neglected as defined in § 26-8A-2 may report that information as provided in § 26-8A-8.

(emphasis placed on language added in 2012).

Action by the 2012 Legislature, signed into law. SB 13 revises provisions relating to instances when DSS is not required to pursue reunification of child and parent, with similar revisions as to instances warranting termination of parental rights. The new legislation amends both SDCL 26-8A-21.1 and SDCL 26-8A-26.1 in a similar fashion by inserting a new (2) and amending and shifting existing (2) to (3), causing subsequent subsections to renumbered. Additionally, a new provision is added as (11).

New language, shown as that which is underlined, from SB 113 is as follows:

(2) Aided or abetted, attempted, conspired, or solicited to commit a crime defined in § 22-16-4, 22-16-7, 22-16-15, or 22-16-20 or the law or ordinance of another jurisdiction having elements similar to an offense described by any of those statutes;

(3) Committed a crime defined in § 22-18-1.1, 22-22-7, or subdivision 22-23-2(2) against the child or another child of such parent, or committed conduct described by that section ~~those sections~~ that violated the law or ordinance of another jurisdiction having elements similar to the offense described by that section those sections;

(11) Is required to register as a sex offender pursuant to chapter 22-24B.

Add as an additional note case on page 713:

Reasonable Force through Corporal Punishment Rejected as Defense in Conviction for Aggravated Child Abuse. The SD Supreme Court affirmed the Defendant's conviction for aggravated child abuse in *State v. Morgan*, 2012 S.D. 87. The jury rejected Defendants asserted defense of reasonable force through corporal punishment and the Court found that there was sufficient evidence to support the verdict. This decision is unanimous with opinion authored by Justice Severson.

Make this a “new” note 1 on **page 714**, with existing notes on pp. 714-16 to be renumbered accordingly:

Mother, as to whom child (subject of A & N proceeding) had been returned, loses appeal, but persuades DSS to remove her name from “central registry.” The child in *Interest of M.V.*, 2011 S.D. 81, 808 N.W.2d 916, was eventually returned to his mother in this “abuse and neglect” proceeding, but mother presented an appeal as to certain rulings made during the course of the proceeding. When one-month old, this child was brought to the hospital in critical condition. Father was the primary caretaker as a “stay-at-home father.” Doctors determined that there may have been child abuse. Father was prosecuted criminally, but was acquitted. Even though legal custody had been restored to mother, mother objects to the placement of her name on the state’s “central registry for child abuse or neglect.” Mother unsuccessfully argued 3 issues on appeal: 1) that the lower court should have made separate findings as to her culpability and as to father’s culpability; 2) that the child was “abused or neglected”; and 3) that the trial court erred in not making an alternative finding under SDCL 26-8A-2(5) [child is homeless, without proper care...]. The lower court’s ruling was affirmed in all respects by this unanimous 4-justice opinion authored by Justice Zinter. Justice Severson did not participate. As to the placement of mother’s name on the central registry, the opinion states, “Mother’s remedy is with the Department [of Social Service] rather than the juvenile court” and footnote 3 of the opinion reports that mother had indeed successfully petitioned DSS to remove her name from the central registry.

Make this a “new” note 1 on **page 727**, with existing notes on pp. 727-729 to be renumbered accordingly:

Termination of rights for incarcerated parents upheld. In *Interest of M.S. & K.S.*, 2014 S.D. 17, the parental rights of both mother and father were terminated as to this child that was born on 5/13/11 at which time both parents were in jail. The child tested positive for 65 nanograms of THC at the time of birth. Both mother and father went to prison and Mother’s expected release date is June 5, 2015. Father’s release date was found by the trial court to be “long after Mother is released.” The final dispositional hearing took place on March 12, 2013. The SD Supreme Court affirmed the termination of parental rights rejecting arguments that the trial court’s ruling was not “least restrictive alternative” and that DSS had not engaged in “reasonable efforts to reunite [the parents] with the children.” This is a unanimous decision with opinion authored by Justice Konenkamp.

Add as additional notes, following note 14, on **page 744**:

Maine Supreme Court Holds South Dakota Custody Order not protected by PKPA in Termination Proceeding. In a decision handed down August 10, 2010, *In Re Higera N.*, 2010 ME 77, 2 A.3d 265 (Me. 2010), the Maine Supreme Court held that a South Dakota Interim Custody Order (in favor of the father) was not entitled to protection under the federal PKPA in a situation where the State of Maine – acting through its Department of Health and Human

Services – brought a child protection action. This decision holds that the South Dakota temporary custody order was indeed a “custody determination” as defined by the PKPA, but that a “state” acting in its *parens patriae* role is not a “contestant” under the PKPA. This decision affirms the termination of parental rights of the father. The court notes that its ruling is consistent with the views expressed by the South Dakota Attorney General and United States Department of Justice/Attorney General/U.S. Attorney in *amicus curiae* briefs filed in the case.

Requirement of signature of parent on Notice of Appeal is jurisdictional in termination of parental rights situation. In *Interest of B.H., JR. & M.H.*, 2011 S.D. 26, 799 N.W.2d 408, we find a situation where father’s parental rights were terminated in an abuse & neglect proceeding. For an appeal from a termination of parental rights proceeding, it is required by SDCL 15-26A-4 (1) that both the appellant and his attorney sign the notice of appeal. Only the attorney signed the notice of appeal which was filed on June 24, 2010. The SD Supreme Court dismissed the appeal on June 30, 2010. Responding immediately to the dismissal, father’s attorney sought reinstatement of appeal on July 1, 2010, and provided a new notice of appeal signed by both father and attorney, together with an affidavit stating that father did not sign the earlier notice because “he was hospitalized and changing residences.” This decision denies reinstatement, holding that the signature requirement is jurisdictional. This is a unanimous *per curiam* opinion.

Add the following as additional note on page 745:

Report on 2011 Legislation: SB 13 raises the age permissible for use of out-of-court statements by children in A & N proceedings. SDCL 19-16-39 permits an “out-of-court statement not otherwise admissible” to be used as evidence in an “abuse or neglect or any proceeding for termination of parental rights.” The statute previously referred to a “statement was made by a child under the age of ten years or by a child ten years of age or older who is developmentally disabled.” This legislation raises the age from ten years to thirteen years.

E. Indian Child Welfare Act (ICWA)

C. Triggering ICWA

Add the following as additional notes on page 754:

ICWA is not applicable in A & N proceeding for ethnic Indian child not eligible for membership in tribe. The trial court in *Interest of L.S.*, 2012 S.D. 22, 812 N.W.2d 505, found that the provisions of ICWA are not applicable to an Indian child that is “not eligible for tribal membership.” (The unique status of such children is also referred to as “ethnic Indians ineligible for tribal membership.” ¶ 15.) This decision affirms the trial court’s ruling and also affirms the termination of mother’s parental rights and finding that termination was the least restrictive alternative. This decision is unanimous with opinion by Justice Konenkamp.

ICWA is “not fully applicable” to emergency or temporary custody proceedings. (Thanks to Sarah Baron Houy who summarized this opinion on October 11, 2012 at which time I was traveling out of state.) In *Cheyenne River Sioux Tribe v. Davis*, 2012 S.D. 69, the tribe unsuccessfully sought a writ of prohibition or mandamus against Judge Jeff Davis, Presiding Judge of the Seventh Circuit.

This case arises out of proceedings instituted by the State concerning the placement of “[three] unattended Native American children, ages sixteen, twelve, and three, [who] were taken into custody from their residence by the Rapid City Police Department in the early morning hours of July 6, 2012.” The circuit court held a temporary custody hearing that same day, at which Mother and the Tribe (pursuant to ICWA) appeared. Based upon the Petition, police report, and an affidavit from a DSS Specialist, Judge Davis awarded temporary custody of the children to DSS for 60 days. The Tribe objected to the placement and requested an evidentiary hearing “in a week or in the reasonably near future to consider the factual basis for taking the children.” Judge Davis denied the request and set a hearing for September 4, 2012.

The Tribe then filed the instant action, seeking a writ to “compel a new temporary custody hearing or to arrest further proceedings in the case until a new hearing could be held.” (In the meantime, the youngest child’s case was transferred to tribal court; the middle child was returned to her father; and the oldest child’s case remained in circuit court.)

The SD Supreme Court found that ICWA does not “fully” apply to emergency or temporary custody proceedings in accordance with 25 U.S.C. §1922 which provides: “Nothing in this subchapter shall be construed to prevent the emergency removal of an Indian child who is a resident of or is domiciled on a reservation, but temporarily located off the reservation, from his parent or Indian custodian or the emergency placement of such child in a foster home or institution, under applicable State law, in order to prevent imminent physical damage or harm to the child.” At least five other states have reached this result, with four specifically recognizing §1922’s applicability to “all Indian children.” As one court noted, “It would make no sense to give a state more power to make an emergency placement of an Indian child who lives on a reservation than one who lives off the reservation.”

The SD Supreme Court rejected the Tribe’s argument that there was insufficient evidence to support a finding of a “need for temporary custody” under SDCL §26A-7A-18. Because the Rules of Evidence and Civil Procedure are inapplicable to non-adjudicatory juvenile hearings, the police report and DSS affidavit were sufficient evidence of a “need for temporary custody.”

To obtain a writ of prohibition or mandamus, the petitioner must demonstrate a “clear legal right to performance of the specific duty sought to be compelled” and that the respondent has “a definite legal obligation to perform that duty.” The Tribe did not meet this burden, and its application was dismissed. Chief Justice Gilbertson authored this unanimous decision.

U.S. Supreme Court recognizes excepted areas to ICWA's heightened requirements and ICWA's placement preference in *Adoptive Couple v. Baby Girl*, --- S.Ct. ----, 2013 WL 3184627.

FACTS and Lower Courts:

Mother and Adoptive Couple. The child's father is an enrolled member of the Cherokee Nation. The birth mother is non-Indian. Their Baby Girl is only 1.2 % (3/256 ths) Cherokee but satisfies the definition of "Indian Child" under ICWA because she is eligible for tribal enrollment. As stated in the opinion, "Birth Mother sent Biological Father a text message asking if he would rather pay child support or relinquish his parental rights. Biological Father responded via text message that he relinquished his rights." Furthermore, "Working through a private adoption agency, Birth Mother selected Adoptive Couple, non-Indians living in South Carolina, to adopt Baby Girl. Adoptive Couple supported Birth Mother both emotionally and financially throughout her pregnancy. Adoptive Couple was present at Baby Girl's birth in Oklahoma on September 15, 2009, and Adoptive Father even cut the umbilical cord. The next morning, Birth Mother signed forms relinquishing her parental rights and consenting to the adoption."

Indian Father and Tribe. In connection with the adoption proceeding, "Biological Father signed papers stating that he accepted service and that he was 'not contesting the adoption.' But Biological Father later testified that, at the time he signed the papers, he thought that he was relinquishing his rights to Birth Mother, not to Adoptive Couple." The Cherokee Nation subsequently intervened in the adoption proceeding.

Lower Courts. Both the South Carolina trial court and Supreme Court denied the adoption due to the failure of the adoptive parents to meet the heightened burdens and placement preference imposed by ICWA.

HOLDINGS by U.S. Supreme Court:

The U.S. Supreme Court reversed and remanded. This Opinion, establishing new law, held as follows:

- 1) The heightened burden, found in ICWA's §1912(f), of showing "evidence beyond a reasonable doubt that the continued custody of the child by the parent or Indian custodian is likely to result in serious emotional or physical damage to the child" does not apply where the Indian parent never had custody of the Indian Child. The language "continued custody" found in ICWA's §1912(f) dictates this result which is also supported by the BIA guidelines.

- 2) The heightened requirement, found in ICWA's §1912(d), of showing "active efforts have been made to provide remedial services . . . designed to prevent the breakup of the Indian family" does not apply "when an Indian parent abandons an Indian child prior to birth and that child has never been in the Indian parent's legal or physical custody, there is no 'relationship' that would be 'discontinu[ed]'—and no 'effective entity' that would be 'end[ed]'—by the termination of the Indian parent's rights."
- 3) The requirement of an adoption placement preference (favoring an extended Indian family member, within the Indian tribe or in favor of other Indian families), found in ICWA's §1915(a) does not apply "in cases where no alternative party has formally sought to adopt the child." In this case, "Biological Father is not covered by §1915(a) because he did not seek to adopt Baby Girl... Moreover, Baby Girl's paternal grandparents never sought custody of Baby Girl... Nor did other members of the Cherokee Nation or 'other Indian families' seek to adopt Baby Girl, even though the Cherokee Nation had notice of—and intervened in—the adoption proceedings."

SUMMARY and Disapproval of ICWA as a "trump card."

Summarizing its ruling in its concluding paragraph, the U.S. Supreme Court expressed disapproval for the situation where, "a biological Indian father could abandon his child *in utero* and refuse any support for the birth mother—perhaps contributing to the mother's decision to put the child up for adoption—and then could play his ICWA trump card at the eleventh hour to override the mother's decision and the child's best interests." The Court further observed, "If this were possible, many prospective adoptive parents would surely pause before adopting any child who might possibly qualify as an Indian under the ICWA. Such an interpretation would raise equal protection concerns, but the plain text of §§1912(f) and (d) makes clear that neither provision applies in the present context. Nor do §1915(a)'s rebuttable adoption preferences apply when no alternative party has formally sought to adopt the child."

E. Indian Child Welfare Act (ICWA)

3. The Requirement of Notice

Add as additional **note case on p. 758**:

Failure to Serve Notice of Appeal On Tribe is Jurisdictionally Fatal to Appeal. In *Matter of B.C. and I.C.*, 2010 SD 59, 786 N.W.2d 350, SD Supreme Court dismissed 4 appeals by parents whose parental rights were terminated in Abuse & Neglect proceedings. These cases are subject to the Indian Child Welfare Act and in each case the Tribe had intervened. Also, in each case the appealing parent failed to serve a Notice of Appeal on the Tribe. This *per curiam* opinion holds that failure to serve the Tribe with Notice of Appeal is "jurisdictionally fatal." Footnote 2 of the opinion states, "Our decision should not be read to condone the State's careless practice in failing to include the intervening Tribes on the certificates of service of the notice of entry of orders."

5. Exclusive Jurisdiction

Add as an additional note on page 773, before "6. Complying with ICWA":

Tribal Court's purported assertion of exclusive jurisdiction under ICWA, based upon minor child's residency of only 6 days following death of mother, rejected where child was subject to ongoing custody jurisdiction of state court accompanied by geographic relocation restrictions placed upon mother prior to her death. The custody dispute in *Merrill v. Altman*, 2011 S.D. 94, 807 N.W.2d 821, arose upon the death of the child's mother. The dispute is between the maternal grandparents and the child's biological father. Custody, as between the parents, had been adjudicated in 2007 by the Brown County Circuit Court. The state court's decree in 2007 restricted mother's ability to relocate residency of the child. Furthermore, in 2009 the state court specifically denied mother's request to relocate with the child to the Mille Lacs Reservation in Minnesota. Mother died in an automobile accident on April 10, 2010. Six days after the mother's death, the maternal grandparents (with immediate possession of the child at the time) instituted a guardianship proceeding with the tribal court for Mille Lacs Band of Ojibwe Indian Tribe in Minnesota. Notice was given to biological father at 11:30 AM on April 12, 2010 for a hearing scheduled at 4:00 PM on that same date. The tribal court granted temporary custody to maternal grandparents on April 14, 2010 and this was followed by an award of permanent guardianship in favor of the maternal grandparents on September 7, 2010, asserting "exclusive jurisdiction" under ICWA. Maternal grandparents then petitioned the Brown County Circuit Court to "recognize" the tribal order. The state court refused to do so, holding that child's "residence for purposes of ICWA, was not established by the six days he resided on the Mille Lacs Reservation after [his mother's] death," especially where the state court had entered restrictive orders prohibiting relocation. Furthermore the state

court, following the legal principles which have evolved under *Troxel v. Granville* (preferring parents over non-parents), held that father was entitled to custody. The SD Supreme Court affirmed, holding that the child "did not 'reside' on the reservation." The SD Supreme Court looked at commentary for the BIA guidelines which "suggests that residence requires more than 'simple physical presence.'" ¶19. In regard to the relocation restrictions, the opinion stated, "A court order that prohibits a person from living or moving to a certain place applies equally to domicile and residence" and that "such forum shopping cannot be condoned as it is incompatible with existing jurisdiction." ¶ 21. The opinion concludes with the statements that, "The Circuit Court did not err in finding that the Tribal Court did not have exclusive jurisdiction over the [grandparents'] guardianship petition. Consequently, the Circuit Court was correct in denying [grandparents'] petition to recognize the Tribal Court order." ¶ 23. This decision is unanimous with opinion authored by Chief Justice Gilbertson.

6. Complying with ICWA

Add as additional **note cases on p. 780:**

Services to non-incarcerated parent can be considered under ICWA to satisfy "active efforts" for incarcerated parent. In *Interests of S.H.E., D.H.E.*, 2012 S.D. 88, DSS successfully persuaded the trial court to terminate father's parental rights as to four of his children, satisfying both the requirements of state law and ICWA. This appeal addresses the obstacles encountered by DSS in dealing with an incarcerated parent and the need to establish "active efforts" (under ICWA) to reunify the family, as well as the need to prove that termination is the "least restrictive alternative." The Court affirms the trial court and holds on this "issue of first impression" that "services offered to a non-incarcerated parent can be considered" in finding that "active efforts" have been provided to the incarcerated parent. This is a unanimous "per curiam" opinion.

Good cause found for deviation from ICWA's placement preference scheme. In *Matter of D.W.*, 2011 S.D. 8, 795 N.W.2d 39, parental rights were terminated for an Indian child. The trial court placed the child with a Michigan couple, outside the parameters set forth in ICWA's placement preferences section. The child's tribe (Oglala Sioux Tribe) appealed. The SD Supreme Court affirmed in a unanimous *per curiam* opinion, finding that "good cause" existed to deviate from the placement preference of ICWA.

ICWA Satisfied. Father appealed the termination of his parental rights in *Interest of P.S.E.*, 2012 S.D. 49, 816 N.W.2d 110. This case involves ICWA and father's arguments on appeal asserted 1) that DSS did not make active efforts to reunite the Indian family and 2) that the efforts made were successful. The SD Supreme Court affirmed, stating, "the evidence presented shows that DSS provided active and reasonable, albeit abbreviated, efforts to place P.S.E. with Father, and those efforts were unsuccessful." This is a unanimous decision with opinion authored by Justice Severson.

XVII. Tort Law in the Domestic Relations Arena

B. Actions Between Unmarried Partners

3. Stalking

Add as additional notes at the top of page 803, before “B. Actions Between...”

The 2014 South Dakota Legislature enacted new Reciprocal Discretionary Jurisdiction Provisions have been enacted, enabling crossover jurisdiction, when necessary, for situations involving Domestic Abuse and Stalking. The new provisions are as follows:

SDCL 22-19A-8.1. Petition for protection order in which allegations support domestic abuse rather than stalking or physical injury. If a petition for a protection order alleging the existence of stalking or physical injury is filed with the court pursuant to § 22-19A-8 and, if the court, upon an initial review, determines that the allegations do not support the existence of stalking or physical injury, but that the allegations do support the existence of domestic abuse pursuant to § 25-10-3, the court, in its discretion, may hear and act upon the petition as though the petition had been filed under § 25-10-3 and subject to the provisions of chapter 25-10.

SDCL 25-10-3.3. Petition for protection order in which allegations support stalking or physical injury rather than domestic abuse. If a petition for a protection order alleging the existence of domestic abuse is filed with the court pursuant to § 25-10-3 and, if the court, upon an initial review, determines that the allegations do not support the existence of domestic abuse, but that the allegations do support the existence of stalking or physical injury pursuant to § 22-19A-8, the court, in its discretion, may hear and act upon the petition as though the petition had been filed under § 22-19A-8 and subject to the provisions of chapter 22-19A.

Minor seeking protection order under South Dakota’s stalking statutes entitled to protection. A 17 year old sought and received an Order of Protection under South Dakota’s “stalking” statutes in *March v. Thursby*, 2011 S.D. 73, 806 N.W.2d 239. The judge who granted the order “rotated off the Fall River County bench” and another judge was faced with “a motion seeking detailed findings of fact and conclusions of law” to support the order. The new judge “conducted a hearing and determined that she could not change the findings and conclusions of another circuit judge.” On appeal the SD Supreme Court reversed the protection order “due to the insufficiency of the findings of fact.” This is a unanimous per curiam opinion. This opinion also holds that

- 1) failure to proceed with the appointment of a guardian ad litem for the petitioner, only 17 at the time she signed the petition, was a mere “procedural irregularity” and did not defeat her ability to seek relief. This aspect of the decision lines up with *Beerman v. Beerman*, 1997 S.D. 11, which “held that protection of a minor overrides procedural irregularities” in the connection with our domestic violence statutes. In this opinion, the Court stated, “March did not seek a protection order under the domestic violence statutes. Rather, she sought a protection order under the stalking statutes. This does not make her protection any less important. March’s protection outweighs the ‘procedural irregularity’ that occurred when March signed the petition while a minor.” 2011 S.D. 73 at ¶ 10
- 2) defendant, a resident of Illinois, *waived* the issue of “lack of personal jurisdiction. Even though he had informed the trial court that he “was challenging jurisdiction of the South Dakota courts over him,” he did not properly present the issue in a motion under SDCL 15-6-12 nor did he include the issue in a responsive pleading.
- 3) defendant’s challenge to subject matter jurisdiction – on the basis that the acts giving petitioner fear of harm took place in Illinois, not South Dakota – failed because SD circuit courts have authority to hear “all cases” under Art. V, § 1 of S.D. Const. and the petitioner resides in South Dakota.

C. Third Parties

Add the following as an **additional note on page 826 before “E. Consortium:”**

Trial court erred in granting summary judgment on alienation of affections suit. The trial court in *Rumpca v. Brenner*, 2012 S.D. 33, 814 N.W.2d 128, granted summary judgment for the defendant on the basis that the wife of plaintiff had no affection for plaintiff that could be alienated. The SD Supreme Court reversed, stating in ¶ 11,

From an examination of the entire record, we conclude that this conflicting evidence creates a genuine issue of material fact on whether Kellie had affection for her husband that Brenner could have alienated. These disagreements must be resolved by a jury.

This is a unanimous ruling with opinion authored by Justice Konenkamp. Circuit Judge Myren sat on this case in lieu of Justice Wilbur.

F. New Theories

Add as an additional note case on page 836:

Wife's child from former marriage fails in effort to sue step father for property interest in land acquired during marriage. In *Niesche v. Fox*, 2013 S.D. 90: Wife's child (from previous marriage) sued Wife's subsequent Husband asserting that he "deprived [Wife] of her ownership interest in [960 acres of farmland] which deprived [daughter] of an inheritance." Daughter "initially pleaded causes of action for breach of marital and fiduciary duty, fraud and deceit, intentional interference with inheritance, and unjust enrichment, along with claims for punitive damages and attorney's fees. She later added causes of action for constructive trust, estoppel, and undue influence." The trial court granted summary judgment for Husband and the SD Supreme Court affirmed. This is a unanimous decision, with opinion authored by Justice Zinter.

XIX. Miscellaneous

B. Domestic Violence

Add the following as additional notes on page 871, following note 21:

Report on 2014 Legislation. The 2014 South Dakota Legislature passed five bills which tweaked the statutes concerning Domestic Abuse Protection and Stalking Protection Orders. They are as follows:

A new statute was enacted which provides for a "delayed arrest" in regard to a victim of domestic violence in certain situations.

SDCL 25-10-36.1. Arrest of domestic abuse victim for outstanding warrant. No law enforcement officer, called to the scene of a domestic abuse complaint, is required to arrest any victim of domestic abuse for an outstanding warrant if:

- (1) The victim is not otherwise liable to arrest for any action arising out of the present incidence of domestic abuse;
- (2) The outstanding warrant is for a nonviolent misdemeanor offense; and
- (3) The victim is the custodial parent or immediate caregiver of a minor child.

However, the victim is subject to arrest on any outstanding warrant after seventy-two hours have passed since the incidence of the domestic abuse call.

The decision of an officer to arrest or not to arrest a victim on an outstanding warrant does not constitute a cause of action against the officer, the law enforcement agency, the employing entity, or any of the employing entity's employees.

SDCL 25-10-3 has been amended to read as follows (continuity for protection orders):

SDCL 25-10-3. Petition for protection order--Procedure--Standard petition form.

There exists an action known as a petition for a protection order in cases of domestic abuse. Procedures for the action are as follows:

- (1) A petition under this section may be made by any family or household member against any other family or household member;
- (2) A petition shall allege the existence of domestic abuse and shall be accompanied by an affidavit made under oath stating the specific facts and circumstances of the domestic abuse; and
- (3) A petition for relief may be made whether or not there is a pending lawsuit, complaint, petition, or other action between the parties. However, if there is any other lawsuit, complaint, petition, or other action pending between the parties, any new petition made pursuant to this section shall be made to the judge previously assigned to the pending lawsuit, petition, or other action, unless good cause is shown for the assignment of a different judge.

The clerk of the circuit court shall make available standard petition forms with instructions for completion to be used by a petitioner. ~~The Department of Social Services shall prepare the standard petition form.~~

SDCL 25-10-12.1 is amended to read as follows (notice regarding enforcement of foreign domestic protection orders):

SDCL 25-10-12.1. Enforcement of foreign protection orders--Requirements. Any domestic ~~violence~~ abuse protection order, or any stalking or physical violence protection order, issued by a court of competent jurisdiction of another state, Indian tribe, the District of Columbia, or a commonwealth, territory, or possession of the United States is enforceable as if the order was issued by a court in this state if all of the following requirements are satisfied:

- (1) The respondent received notice of the order in compliance with requirements of the issuing jurisdiction;
- (2) The order is in effect in the issuing jurisdiction;
- (3) The issuing court had jurisdiction over the parties and the subject matter;
- (4) The respondent ~~was~~ is or has been afforded reasonable notice and opportunity to be heard sufficient to protect that person's right to due process in the issuing jurisdiction. In the case of ex parte orders, notice and opportunity to be heard ~~must have~~ is or has been provided within the time required by the law of the issuing jurisdiction; and, in any event, within a reasonable time after the order was issued, sufficient to protect the respondent's due process rights;
- (5) If the order also provides protection for the respondent, a petition, application, or other written pleading was filed with the issuing court seeking such an order and the issuing court made specific findings that the respondent was entitled to the order; and

(6) The prohibited conduct violative of the foreign protection order could be prohibited by a protection order if issued in this state.
Any protection order meeting the requirements of this section is a foreign domestic ~~violence~~ abuse protection order or a foreign stalking or physical violence protection order.

New Reciprocal Discretionary Jurisdiction Provisions have been enacted, enabling crossover jurisdiction, when necessary, for situations involving Domestic Abuse and Stalking. The new provisions are as follows:

SDCL 22-19A-8.1. Petition for protection order in which allegations support domestic abuse rather than stalking or physical injury. If a petition for a protection order alleging the existence of stalking or physical injury is filed with the court pursuant to § 22-19A-8 and, if the court, upon an initial review, determines that the allegations do not support the existence of stalking or physical injury, but that the allegations do support the existence of domestic abuse pursuant to § 25-10-3, the court, in its discretion, may hear and act upon the petition as though the petition had been filed under § 25-10-3 and subject to the provisions of chapter 25-10.

SDCL 25-10-3.3. Petition for protection order in which allegations support stalking or physical injury rather than domestic abuse. If a petition for a protection order alleging the existence of domestic abuse is filed with the court pursuant to § 25-10-3 and, if the court, upon an initial review, determines that the allegations do not support the existence of domestic abuse, but that the allegations do support the existence of stalking or physical injury pursuant to § 22-19A-8, the court, in its discretion, may hear and act upon the petition as though the petition had been filed under § 22-19A-8 and subject to the provisions of chapter 22-19A.

Range of persons eligible for protection from Domestic Abuse Expanded, as follows:

New statutes added:

SDCL 25-10-3.1. Persons entitled to apply for protection order. Any person who is involved in one of the following relationships with another party:

- (1) Spouse or former spouse;
- (2) Is in a significant romantic relationship;
- (3) Has a child or is expecting a child with the abusing party;
- (4) Parent and child, including a relationship by adoption, guardianship, or marriage; or
- (5) Siblings, whether of the whole or half blood, including a relationship through adoption or marriage;

is entitled to apply for a protection order or a temporary protection order pursuant to the provisions of this chapter.

SDCL 25-10-3.2. Factors for determining significant romantic relationship. For purposes of chapter 25-10, when determining whether a relationship is a significant romantic relationship, the court shall consider, among others, the following factors:

- (1) The length of time of the relationship;
- (2) The frequency of interaction between the parties;
- (3) The characteristics and the type of the relationship.

SDCL 25-10-1 be amended to read as follows:

SDCL 25-10-1. Terms used in this chapter mean:

- (1) "Domestic abuse," physical harm, bodily injury, or attempts to cause physical harm or bodily injury, or the infliction of fear of imminent physical harm or bodily injury between family or household members when occurring between persons in a relationship described in section 1 of this Act. Any violation of § 25-10-13 or chapter 22-19A or any crime of violence as defined in subdivision 22-1-2(9) constitutes domestic abuse if the underlying criminal act is committed between ~~family or household members~~ persons in such a relationship;
- (2) "~~Family or household members,~~" spouses, former spouses, or persons related by consanguinity, adoption, or law, persons living in the same household, ~~persons who have lived together, or persons who have had a child together;~~
- (3) —"Protection order," an order restraining any ~~family or household member~~ person in a relationship described in section 1 of this Act from committing any act of domestic abuse or an order excluding any ~~family or household member~~ person in a relationship described in section 1 of this Act from the dwelling or residence of another ~~family or household member~~ person in such a relationship, whether or not the dwelling or residence is shared. A protection order has a duration of five years or less; and
- (4)(3) "Temporary protection order," an order restraining any ~~family or household member~~ person in a relationship described in section 1 of this Act from committing any act of domestic abuse or an order excluding any ~~family or household member~~ person in a relationship described in section 1 of this Act from the dwelling or residence of another ~~family or household member~~ person in such a relationship, whether or not the dwelling or residence is shared. A temporary protection order has a duration of thirty days except as provided in § 25-10-7.1.

SDCL 25-10-3 be amended to read as follows:

25-10-3. There exists an action known as a petition for a protection order in cases of domestic abuse. Procedures for the action are as follows:

- (1) A petition under this section may be made by any ~~family or household member~~ person in a relationship described in section 1 of this Act against any other ~~family or household member~~; person in such a relationship;
- (2) A petition shall allege the existence of domestic abuse and shall be accompanied by an affidavit made under oath stating the specific facts and circumstances of the domestic abuse;
- (3) A petition for relief may be made whether or not there is a pending lawsuit, complaint, petition, or other action between the parties.

The clerk of the circuit court shall make available standard petition forms with instructions for completion to be used by a petitioner. ~~The Department of Social Services shall prepare the standard petition form.~~

SDCL 25-10-5 be amended to read as follows:

25-10-5. Upon notice and a hearing, if the court finds by a preponderance of the evidence that domestic abuse has taken place, the court may provide relief as follows:

- (1) Restrain any party from committing acts of domestic abuse;
- (2) Exclude the abusing party from the dwelling which the parties share or from the residence of the petitioner;
- (3) Award temporary custody or establish temporary visitation with regards to minor children of the parties;
- (4) Establish temporary support for minor children of the parties or a spouse;
- (5) Order that the abusing party obtain counseling;
- (6) Order other relief as the court deems necessary for the protection of a ~~family or household member~~ the person to whom relief is being granted, including orders or directives to a sheriff or constable.

Any relief granted by the order for protection shall be for a fixed period and may not exceed five years.

If any minor child resides with either party, the court shall order that the ~~abusing party~~ restrained person receive instruction on parenting approved or provided by the Department of Social Services as part of any relief granted.

SDCL 25-10-6 be amended to read as follows:

25-10-6. ~~When~~ If an affidavit filed with an application under this chapter alleges that immediate and irreparable injury, loss, or damage will result before an adverse party or his or her attorney can be heard in opposition, the court may grant an ex parte temporary protection order pending a full hearing and granting relief as the court deems proper, including an order:

- (1) Restraining any ~~family or household member~~ person in a relationship described in section 1 of this Act from committing acts of domestic abuse;
- (2) Excluding any ~~family or household member~~ person in a relationship described in section 1 of this Act from the dwelling or the residence of the petitioner.

SDCL 25-10-36 be amended to read as follows:

25-10-36. If any law enforcement officer who is responding to a domestic abuse call has probable cause to believe that a crime has been committed, the law enforcement officer shall arrest the person who is suspected of committing the crime and make a complete report of any action taken. The officer shall indicate on the arrest report and the fingerprint document if the arrest is for a crime against a ~~family or household member as defined in § 25-10-1~~ person in a relationship described in section 1 of this Act.

SDCL 25-10-40 be amended to read as follows:

25-10-40. No police officer or sheriff may release a person charged with assaulting a ~~family or household member, as defined in subdivision 25-10-1(2)~~ person in a relationship described in section 1 of this Act, or violating a protection order, as provided for in this chapter, without providing notice to a committing magistrate judge or circuit court. A committing magistrate judge or circuit court shall determine if bond or other conditions of release are necessary for the protection of the alleged victim.

SDCL 25-10-41 be amended to read as follows:

25-10-41. In determining the conditions of release under § 25-10-40, the court shall consider the following conditions and may impose any condition it considers reasonably necessary to protect the alleged victim of domestic abuse, including ordering the defendant:

- (1) Not to subject the victim to further domestic abuse;
- (2) To vacate the home of the victim;
- (3) Not to contact the victim other than through counsel;
- (4) To engage in counseling;
- (5) To refrain from the consumption of alcohol or the use of drugs;
- (6) To post bond pursuant to § 25-10-23.

As used in this section, the term—~~“domestic abuse”~~, means a violation of § 22-18-1 or 22-18-1.1 if the victim is a ~~family or household member~~ person in a relationship described in section 1 of this Act.

SDCL 23A-28C-4 be amended to read as follows:

23A-28C-4. For the purposes of this chapter, the term, victim, means any person being the direct subject of an alleged act, which would constitute a crime of violence as defined by subdivision 22-1-2(9), simple assault between ~~family or household members as defined in subdivision 25-10-1(2)~~ persons in a relationship described in section 1 of this Act, stalking as defined in chapter 22-19A, a violation of chapter 22-22, or a driving under the influence vehicle accident, under the laws of South Dakota or the laws of the United States. If the victim does not survive such act or is unable to comment, the term, victim, means the members of the immediate family of the primary victim.

No Contact Order Violations Addressed by 2013 Legislature. Following the recommendation made by the 2012 Child Support Commission, the 2013 Legislature passed (and has been signed into law by Governor Dugaard) the following modifications to the statutory provisions relating to violations of no contact orders:

Section 1. That § 25-10-13 be amended to read as follows:

SDCL 25-10-13. Violation of protection order or no contact order as misdemeanor or felony. If a temporary protection order or a protection order is granted pursuant to this chapter or a foreign protection order recognized pursuant to § 25-10-23 or § 25-10-12.1, or if a no contact order is issued pursuant to § 25-10-25, and the respondent or person to be restrained knows of the order, violation of the order is a Class 1 misdemeanor. If any violation of this section constitutes ~~an assault pursuant to a~~ violation of § 22-18-1 or § 22-19A-1, the violation is a Class 6 felony. If a respondent or person to be restrained has been convicted of, or entered a plea of guilty to, two or more violations of this section, the factual basis for which occurred after the date of the second conviction, and occurred within ten years of committing the current offense, the respondent or person to be restrained is guilty of a Class 6 felony for any third or subsequent offense. Any proceeding under this chapter is in addition to other civil or criminal remedies.

Section 2. That § 22-19A-2 be amended to read as follows:

SDCL 22-19A-2. Violation of restraining order, injunction, protection order, or no contact order as felony. Any person who violates § 22-19A-1 when there is a temporary restraining order, or an injunction, or a protection order, or a no contact order issued pursuant to § 25-10-23 or § 25-10-25 in effect prohibiting the behavior described in § 22-19A-1 against the same party, is guilty of a Class 6 felony.

Action by the 2012 Legislature, signed into law. SB 149 authorizes imposition of a bond as term which may be imposed in connection with the conditional release of persons charged with domestic abuse. SB 149 amends SDCL 25-10-41 by adding (6) below:

SDCL 25-10-41. Conditions of release of person charged with domestic abuse. In determining the conditions of release under § 25-10-40, the court shall consider the following conditions and may impose any condition it considers reasonably necessary to protect the alleged victim of domestic abuse, including ordering the defendant:

- (1) Not to subject the victim to further domestic abuse;
- (2) To vacate the home of the victim;
- (3) Not to contact the victim other than through counsel;
- (4) To engage in counseling;
- (5) To refrain from the consumption of alcohol or the use of drugs;
- (6) ***To post bond pursuant to § 25-10-23.***

As used in this section, the term "domestic abuse" means a violation of § 22-18-1 or 22-18-1.1 if the victim is a family or household member.

(emphasis placed on language added in 2012)

Report on 2011 Legislation. The following were enacted and signed into law by the Governor in 2011:

HB 1011 revised certain provisions relating to domestic abuse programs in SDCL 25-10. Testimony in support of this bill indicates that this bill presents no real changes but updates and clarifies existing practices and ensures compliance with federal funding guidelines.

HB 1067 changed the “look back” period in SDCL 22-18-1 & SDCL 25-10-13 from 5 years to 10 years. Existing statutes enhance the criminal offense from Class 1 Misdemeanor to Class 6 Felony for the 3rd offense of a violation of a Protection Order or 3rd Assault offense if the factual basis for the first two offenses (conviction or guilty plea) occurred within the last 5 years. This legislation changes the “look back” period from 5 years to 10 years.

HB 1154 requires \$25 payment into county domestic violence program fund. A new provision in SDCL 25-10 has been added, as follows:

25-10-17.1. Persons convicted of crimes involving domestic abuse required to support domestic violence programs. In addition to any other penalty, assessment, or fine provided by law, the court shall order any person convicted of a crime involving domestic violence or domestic abuse to remit costs in the amount of twenty-five dollars to the clerk of courts. The clerk of courts shall forward any amount collected to the county treasurer for deposit in the county domestic violence program fund. Failure to

remit the amount to the clerk of courts in the time specified by the court is punishable by contempt proceedings.

Source: SL 2011, ch 133, § 1.

County not responsible for payment of court-appointed counsel for children in protection order proceeding. In *Pfuhel v. Pfuhel*, 2014 S.D. 25, the trial court appointed counsel for children in a protection order proceeding and ordered the County of Minnehaha to pay the attorney \$ 1,094.40. The SD Supreme Court reversed holding, "the circuit court lacked statutory authority to order Minnehaha to pay appointed counsel's costs." This decision is unanimous with opinion authored by Justice Severson. Circuit Judge Eng sat on this case, in lieu of Justice Wilbur.

Stalking conduct may be basis of domestic abuse protection order – conduct alone, without criminal conviction, satisfies definition of “domestic abuse.” In *Trumm v. Cleaver*, 2013 S.D. 85, the trial court issued a domestic abuse protection order under SDCL 25-10-5 based upon conduct that constituted “stalking.” The defendant argued on appeal that the definition of “domestic abuse” as set forth in SDCL 25-10-1(1) requires a criminal conviction of stalking. The SD Supreme Court disagreed and affirmed the protection order, stating in ¶ 14:

We conclude that the circuit court properly interpreted SDCL 25-10-1(1). [Petitioner’s] civil remedy under chapter 25-10 did not require a criminal conviction for stalking under SDCL 22-19A-1.

The Court also awarded appellate attorney fees, stating in ¶ 16:

[Respondent] unreasonably required [Petitioner] to defend against his meritless appeal. We award [Petitioner] her appellate attorney’s fees.

This decision is unanimous. The Court’s opinion is authored by Justice Zinter.

Protection Order Reversed, Finding of Domestic Abuse Not Supported. The trial court’s grant of a protection order in favor of an ex-wife and daughter was reversed by the South Dakota Supreme Court in *Castano v. Ishol*, 2012 S.D. 85, because the trial court “fail[ed] to enter findings of fact and conclusions of law with sufficient specificity to permit meaningful review.” In this case the evidence appeared to fall short in establishing that domestic abuse occurred, but rather simply indicated that attempts to communicate (in a non-threatening fashion) were rebuffed by ex-wife. The decision is unanimous with opinion authored by Chief Justice Gilbertson.

Appendix

Page 80:

Status Report of Same-Sex Marriages and Civil Unions as recognized or rejected by the 50 states in the USA and as recognized or rejected globally, prepared by Professor Lynn D. Wardle

Page 84:

Course Syllabus , Law 853, Family Law, Fall 2014

Status of Same-Sex Unions in the USA and Globally

(as of June 28, 2014)

By:
Lynn D. Wardle
Professor of Law
Brigham Young University

The Legal Status of Same-Sex Marriage and Unions in the USA and the World
Lynn D. Wardle
28 June 2014^a

A. Legal Allowance of Same-Sex Unions in the USA in Twenty (20) of 50 states + DC + 8/564 Indian Tribes):

Same-Sex Marriage Legal in Twenty (20) USA States (+ many fed crt state SSM orders)

Massachusetts (judicial decree 2004), Connecticut (judicial order 2008), Iowa (judicial order 2009), Vermont (2009), New Hampshire (2010), New York (2011), Maine (ballot 2012), Maryland (ballot 2012), Washington (ballot 2012), Delaware (2013), California (July 2013, judicial order not appealed), Minnesota (2013), Rhode Island (2013), New Jersey (judicial order 2013); Hawaii (2013); New Mexico (judicial order 2013); Illinois (law June 2014); Oregon (judicial decree June 2014), Pennsylvania (judicial decree 2014), Indiana (judicial order 2014). – plus the District of Columbia (2010), +8 (of 566) U.S. Indian tribes - the Coquille, Suquamish, Odawa Tribes, Santa Ysabel, and Pokagon Band of Potawatomi Tribe, Colville, Cheyenne and Arapaho Tribes of Oklahoma, and Leech Lake Tribal Council.^b

^a Compare *Defining Marriage: State Defense of Marriage Laws and Same-Sex Marriage*, available at <http://www.ncsl.org/research/human-services/same-sex-marriage-overview.aspx> (seen 16 June 2016); Jennifer C. Pizer & Sheila James Kuehl, *Same-Sex Couples and Marriage, Model Legislation for Allowing Same-Sex Couples to Marry or All Couples to Form a Civil Union* (The Williams Institute August 2012); *Status of Same-Sex Relationships Nationwide*, Lambda Legal, August 19, 2011, available at <http://www.lambdalegal.org/publications/articles/nationwide-status-same-sex-relationships.html> (last viewed 20 August 2011); See Lambda Legal, *Recognition of Same-Sex Couples Worldwide, Recognition of Same-Sex Couples in the United States*, September 12, 2011, available at http://data.lambdalegal.org/publications/downloads/fs_recognition-of-same-sex-couples-worldwide.pdf (last seen 9 July 2012); Bea Verschraegen, *The Impact of European Family law on National Legal Systems*, Vol. 2, Central and European Countries after and before the Accession at 63, 63-65 (__ ed. 2011).

^b Voters approved SSM in 3 states in 2012 (ME, MD, & WA). In at least 6 of the states where SSM now is legal it was the result of judicial decree or initiative (MA, IA, CA, CN, NJ, NM & poss VT). ^b (# = law passed but not yet in effect). A trial court in New Jersey ruled that it was unconstitutional for the state to not permit same-sex

Pending Litigation/Appeals: Challenges to laws barring SSM are pending in every state with such laws. See, e.g., Utah (2013 order, stayed on appeal); Oklahoma (2014 order, stayed on appeal), Ohio (2014, stayed on appeal), Kentucky (2014, stayed on appeal), Virginia (2014, stayed on appeal), Texas (2014, stayed on appeal), Michigan (March 2013), Idaho, Oregon, Pennsylvania, Wisconsin, Arkansas, and Tennessee (injunction pending challenge to TN marriage law).

Same-Sex Civil Unions Equivalent to Marriage Legal in Three (3) Additional US States:

Oregon (2008), Nevada (2009), & Colorado (2013) (+ some states with SSM).^c

Same-Sex Unions Registry & Specific, Limited Benefits in One (1) Additional US Jurisdiction

Wisconsin. *Some States with SSM or CU also allows limited benefit relations – HI (1997).*

B. Legal Rejection of Same-Sex Unions in the USA:

Same-Sex Marriage Prohibited by State Constitutional Amendment (SMA) in Thirty-one (31)

States (60%) (including CA - disregarded by court, and HI where amendment gave legislative control):

Alabama, Alaska, Arizona, Arkansas, Colorado, Florida, Georgia, Hawaii,[#] Idaho, Kentucky,* Kansas, Louisiana, Michigan, Mississippi, Missouri, Montana, Nebraska, Nevada, North Carolina, North Dakota, Ohio,* Oklahoma,* Oregon, South Carolina, South Dakota, Tennessee, Texas,* Utah,* Virginia,* and Wisconsin.^d (* pending appeal or order invalidating SSM ban) (#ssm approved by legislation)

Same-Sex Civil Unions Equivalent to Marriage Prohibited by State Constitutional Amendment in Twenty (20) USA States (40%):

Alabama, Arkansas, Florida, Georgia, Idaho, Kansas, Kentucky, Louisiana, Michigan, Nebraska, North Carolina, North Dakota, Ohio, Oklahoma, South Carolina, South Dakota, Texas, Utah, Virginia, and Wisconsin.

marriage; the state supreme court denied a stay pending appeal on grounds that the state was unlikely to prevail on appeal, and then the Governor withdrew the state's appeal. *See Lynn Wardle, Mich. St. L. Rev. Apps*

^c Some states – including HI, IL, NV & DC – also allow heterosexual couples to enter CUs also. Washington offers both SSM and SSCU until June 2014 when it will be available only to persons over 62. Several states that had civil unions now have SSMs instead. VT, CN, NH, RI & DE; some have both. See NCSL, *Defining Marriage: Defense of Marriage Acts and Same-Sex Marriage Laws*, July 26, 2013, at <http://www.ncsl.org/issues-research/human-services/same-sex-marriage-overview.aspx> (seen 130802).

^d SMA passed in May 2012 in NC (61%); SMA rejected for first time by voters in MN in 2012; initiatives or referenda legalizing SSM approved by voters in ME, MD, and WA in 2012.). Voters have constitutionally banned SSM in 31 states by adopting SMAs. (In AZ voters first rejected SMA in 2006 then approved SMA in 2008; in ME voters first rejected SSM in 2009 then approved in 2012). In 17 of the 26 “blue states” that voted for Obama in 2012 only male-female marriage was then legal: Hawaii, California, Oregon, Nevada, Colorado, New Mexico, Minnesota, Wisconsin, Illinois, Michigan, Ohio, Pennsylvania, Rhode Island, New Jersey, Delaware, Virginia, and Florida. Bill to legalize SSM in IL fails 130530. In 2008 voters in California passed Prop 8 a constitutional amendment barring SSM but it was ruled unconstitutional in a dubious by a federal district court opinion. State officials refused to appeal and the Supreme Court of the United States ruled that the sponsors of Prop 8 lacked standing to appeal. *Hollingsworth v. Perry*, 5700 U.S. __ (2013).

The total vote rejecting same-sex marriage in votes on the 31 state marriage amendments combined was **over 61%** (as of November 2012).

Same-Sex Marriage Prohibited Without Constitutional Amendment (by statute or common law) in Thirteen (13) Additional States.

C. Legal Allowance of Same-Sex Unions Globally (of 193 Nations / UN):^e

Same-Sex Marriage Generally Legalized in up to Eighteen (18) of 193 Nations (less than 10%)*:

The Netherlands (2001), Belgium (2003), Canada (2005), Spain (2005), *South Africa** (2006), Norway (2009), Sweden (2009), Portugal (2010), Iceland (2010), Argentina (2010), Denmark (2012), Uruguay (2013), New Zealand (2013), France (2013), *Brazil** (2013?), UK (England/Wales) (effective summer 2014); Scotland (effective c. late 2014); Luxembourg (effective January 2015).^f (Also in some particular sub-jurisdictions, municipalities, or states in, e.g., Mexico and the USA)

Same-Sex Non-Marital Unions Mostly Equivalent to Marriage Allowed in Ten* (10) Other Nations (of 193):

Ecuador, Finland, Germany, Slovenia, Andorra, Switzerland, Australia, Austria, Ireland, Liechtenstein.^g

Same-Sex Partnerships (Formal but Not Equal to Marriage) Allowed in at least Five (5) More Nations: See, e.g., Colombia, Croatia, Czech Republic, Hungary, Israel.

D. Legal Rejection of Same-Sex Marriage Globally:

At Least Forty-seven (47) of 193 Sovereign Nations (24%) Have Constitutional Provisions Explicitly or Implicitly Defining Marriage as Union of Man and Woman:

Constitutions of: Armenia (art. 32), Azerbaijan (art. 34), Belarus (art. 32), Bolivia (art. 63), Brazil (art. 226), Bulgaria (art. 46), Burkina Faso (art. 23), Burundi (art. 29), Cambodia (art. 45), China (art. 49),

^e See Gay Marriage Around the World, Pew Research, Dec. 19, 2013, at <http://www.pewforum.org/2013/12/19/gay-marriage-around-the-world-2013/#allow> (seen 140703) The Pew Forum on Religion & Public Life, Gay Marriage Around the World, Feb. 8, 2013, available at <http://www.pewforum.org/Gay-Marriage-and-Homosexuality/Gay-Marriage-Around-the-World-2013.aspx> (seen 130214). The British House of Commons voted to legalize SSM on Feb. 5, 2013. It is expected to pass another vote in the House of Commons and in the House of Lords by Summer 2013. Id.

^f Categorization of some nations is difficult. For example, South Africa legalized “Civil Unions” which can be created by way of “marriage” and can be called “marriages,” but the Marriage Act was not amended and still only allows male-female marriage. See Civil Union Act 17 of 2006(s. Afr.) (available at: <http://www.info.gov.za/view/DownloadFileAction?id=67843>). Likewise, same-sex marriage is permitted in Brazil in 10 of 26 states, and since May 2013 civil registrars were directed to perform same-sex marriages, but the legal status of that directive of the National Judicial Council is debatable. SSM is allowed in sub-jurisdictions of some other nations (e.g., thirteen states in the USA, Mexico (City). (# = law passed but not yet in effect). See *uxembourg approves same sex marriage*, Yahoo! News (18 June 2014), available at <http://news.yahoo.com/luxembourg-approves-same-sex-marriage-203510157.html> (seen 18 June 2014).

^g See note re: SSM/CUs in South Africa and Brazil. Some nations with SSM also allow SSCUs. Some local jurisdictions as Greenland & in some states or provinces in Mexico, the USA, & Venezuela allow SSCUs.

Columbia (art. 42), Croatia (art. 61??, Dec. 2013) Cuba (art. 43), Democratic Republic of Congo (art. 40), Ecuador (art. 38), Eritrea (art. 22), Ethiopia (art. 34), Gambia (art. 27), Honduras (art. 112), Hungary (art. M, Constitution/Basic Law of Hungary (25 April 2011) (*effective Jan. 2012*); Japan (art. 24), Latvia (art. 110 - Dec. 2005), Lithuania (art. 31), Malawi (art. 22), Moldova (art. 48), Mongolia (art. 16), Montenegro (art. 71), Namibia (art. 14), Nicaragua (art. 72), (Panama (art. 58), Paraguay (arts. 49, 51, 52), Peru (art. 5), Poland (art. 18), Romania (art. 44), Rwanda (art. 26), Serbia (art. 62), Seychelles (art. 32), Somalia (art. 2.7, draft Constitution 2012); Sudan (art. 15), Suriname (art. 35), Swaziland Constitution (art. 27), Tajikistan (art. 33), Turkmenistan (art. 25), Uganda (art. 31), Ukraine (ark. 51), Venezuela (art. 77), Vietnam (art. 64). (At least 12 of these imply dual-gender (“men and women have/may”).) **See also** Hong Kong Bill of Rights of 1991 (art. 19); Spain (art. 32, but 2005 SSM law upheld Nov 2012). *Examples:* Article 24, Constitution of **Japan**: “Marriage shall be based only on the mutual consent of both sexes and it shall be maintained through mutual cooperation with the equal rights of husband and wife as a basis. . . .” Article 110, Constitution of **Latvia**: “The State shall protect and support marriage—a union between a man and a woman, . . .” Article 42, Constitution of **Columbia**: the family “is formed . . . by the free decision of a man and woman to contract matrimony” **Uganda** Constitution, Art. 31: “Marriage between persons of the same sex is prohibited.” **Nigeria** passed a law criminalizing SSM on May 30, 2013 - (<http://jurist.org/paperchase/2013/05/nigeria-house-approves-bill-criminalizing-same-sex-marriage.php>) . Homosexual conduct is illegal in 87 globally - 37 in Africa + 50 other nations globally. (<http://www.globalequality.org/component/content/article/166> (130601).

= law is not yet in full effect.

* * * * *

Six different federal district court judges ruled between December 20, 2013 and February 26, 2014 (and more than a dozen others since then) that states marriage laws that do not allow same-sex marriage violate the U.S. Constitution. Five of the six judges who mandated states to legalize same-sex marriage in these cases were appointed by Democrat Presidents (Obama and Clinton); one was appointed by a Republican President (Bush I). The cases were, in Utah (Robert J. Shelby- Obama), Ohio (Timothy S. Black - Obama), Oklahoma (Terence Kern- Clinton), Kentucky (John G. Heyburn II- Bush I, comity), Virginia (Arenda L. Wright Allen- Obama), and Texas (Orlando L. Garcia- Clinton). However, federal judges have refused to mandate SSM in Wisconsin (Sr. Judge Barbara B. Crabb-Carter); ** *See generally* <http://www.washingtonpost.com/blogs/govbeat/wp/2014/02/26/why-6-federal-judges-have-struck-down-state-gay-marriage-bans-in-their-own-words/> . So the political dimension of the judicial trend to force states to legalize same-sex marriage is apparent and is not insignificant.

Law 853, Family Law
Professor Roger M. Baron
Fall, 2014

ATTENDANCE POLICY: Each student should strive to be present at each class.

Unexcused absences in excess of five (5) may result in the deduction of up to 10 points from the final grade. A student is considered present for class by being present in her seat precisely at the designated start time for the class and remaining there until class is dismissed. Only with express consent by the Professor may a student who attends a partial class be given credit for being present. This means that if a student gets up and leaves the room after class has started, that student will be counted absent even if the student returns. If you need to leave the room for an emergency situation, you should explain that situation to the professor before hand, if possible, or otherwise immediately after class. Do not assume that the professor will overlook the situation. The actual “recording” of the absence in a situation like this usually takes place in the professor’s office after class. Students seeking credit for partial class attendance should present their requests to the Professor prior to class, if possible, or as soon as after class as is possible. This rule is designed to bring the matter to the attention of the professor as soon as is possible, contemporaneously with the issue. It is not acceptable for a student to approach the Professor seeking an “excused” absence for a partial class attendance situation which occurred several days earlier.

In lieu of deducting points from the final grade for violations of the attendance policy, a student may, at the Professor’s discretion, be dropped from the course. Also a student may be requested by the professor to voluntarily drop the course and, in the event the student does not voluntarily drop the course upon the professor’s request, a grade of “F” may, in the Professor’s discretion, be assigned to the student.

The matter of class attendance is important. Attendance policies are mandated by the American Bar Association and the Law School Administration. A problematic situation with student attendance is a matter which this professor considers important enough to be revealed to the State Board of Bar Examiners in connection with a student’s application for Bar Admission.

STUDENTS LEAVING THE CLASSROOM WHILE CLASS IS IN

SESSION: Unless specifically permitted by prior arrangement with the Professor, a student who leaves the classroom after class has started is NOT permitted to return to the classroom. Furthermore, an early departure from the classroom is recorded as an “absence” and that absence is considered unexcused unless that absence is deemed “excused” in accordance with the Attendance Policy set forth above.

CLASS RECITATION:

Students shall stand when reciting. The task of specific recitations per class may be pre-assigned among a group of students who will be expected to be “super-prepared.” This

methodology of “pre-assigned” recitations is highly dependent upon class cooperation and will be utilized *only* if student cooperation is maintained throughout the semester. It should be noted that good faith (or rather, lack of good faith) is easily detected by the Professor and no right of unpreparedness is granted to any student by virtue of the Professor’s willingness to indulge in “pre-assigned” recitations. The pre-assignment of recitations does not diminish the expectation (and rule of this class) that each student is expected to be fully prepared for each class. If the pre-designated “super-prepared” students are unable to intelligently recite on the material, then students drawn from the class at large will be expected to recite.

RECORD KEEPING:

Each student is expected to keep track of her own individual record of absences and unprepareds. Although official records are maintained by the Professor, each student’s totals are computed only at the end of each semester or as may otherwise be required. A “running tally” for each student is not maintained throughout the semester.

BOOKS:

The following is required:

Roger M. Baron, *Cases and Materials on Family Law for the South Dakota Lawyer*, 7th edition (July, 2010)

Supplement for above book, July 2014

These books may be purchased at Barnes & Noble book store on campus.

PREPARATION:

Every student is expected to be fully prepared for each class, unless that student has reported her state of unpreparedness to the Professor *prior to* the start of the class period. It is permissible for a student to attend class “unprepared” on two occasions provided the student has left a note on the podium at the front of the classroom *prior to* the designated start time for the class. The note should contain the student’s name, the date and the fact that the student is unprepared. Excuses for being unprepared are neither necessary nor desired. An example of such a note is as follows:

Susan Jones is unprepared
August 27, 2014

A student who is unprepared and who complies with this rule is permitted to remain in class but is *not permitted* to participate in class discussion. Any student who exceeds the allotted number of unprepareds is subject to a penalty deduction of up to 10 points from the final grade for each such occurrence. Any student who comes to class unprepared and fails to report her

unpreparedness prior to the start of class is subject to a penalty deduction of up to 10 points from the final grade.

“Unprepared” is defined to be not only a lack of preparation on the materials assigned, but also such a cursory study of the materials that the student is unable to intelligently discuss the materials when called upon.

In lieu of deducting points from the final grade for violations of this policy, a student may be requested by the professor to drop the course and, in the event the student does not voluntarily drop the course upon the professor’s request, a grade of “F” may, in the Professor’s discretion, be assigned to the student.

DISCRETIONARY POINTS:

The right to award up to 10 additional favorable discretionary points based on class participation is reserved by the Professor.

FINAL EXAM:

The final exam for this class is scheduled for 8:30 A.M., Tuesday, December 9, 2014.

GRADING:

The grade in this course will be determined 100% by the score attained on the closed book final exam, subject to any penalty deductions, sanctions, and/or discretionary points authorized by the provisions in the syllabus. As specified above, a grade of F may be administratively assigned to a student for violation of the attendance policy or for violation of the class preparation policy. As specified below, a penalty deduction of up to 15 points from the final grade may be assessed as a result of a student’s violation of the Laptop Computer usage policy.

LAPTOP COMPUTER USAGE:

The use of laptop computers is a “privilege.” A student’s right to use a laptop is subject to suspension or revocation. Laptops may be used in the classroom, but usage is limited solely for the purpose of note taking. Students may have the word processing program of their choice open, but only that program. Unless specifically authorized by the Professor, ***laptops may not be used for any other purpose.*** The use of laptops for any reason other than note taking is distracting to other students and diminishes the decorum of the classroom. A student who is found to be using a laptop computer for ***any purpose other than note-taking*** is subject to being denied the use of the laptop for all or a portion of the remaining class sessions. Furthermore a student who is found to be using a laptop computer for any of the purposes which are prohibited may be penalized by a deduction of up to 15 points from the final grade.

CELL PHONES: Cell Phones, including cell phones which are turned off, shall not be brought into the classroom. Students should leave their cell phones in their automobiles or in other secure locations. In the event of extraordinary circumstances or an emergency situation, a

student may seek permission by the Professor to bring a cell phone into class. In the event the Professor grants a student permission to bring a cell phone into class, permission shall extend only for that particular class. Permission shall not be granted on an on-going basis, but must be sought prior to each class which the student seeks permission on the basis of extraordinary circumstances or an emergency situation.

ASSIGNMENTS:

Unless otherwise indicated, we will be proceeding directly through the main casebook. The assignment for the first week of class is set forth below:

Read the "Preface" pp. vii

Read and prepare the cases and materials through page 33

For subsequent classes, specific assignments will be made in class and also by way of e-mail messages sent to students in the class.

Office Hours – Professor Roger M. Baron Fall 2014

Monday

10:00 A.M. – 10:30 A.M.

3:00 P.M. – 3:30 P.M.

Tuesday

9:30 A.M. – 10:45 A.M

3:00 P.M. – 3:30 P.M.

Wednesday

2:00 P.M. – 2:45 P.M.

Thursday

9:30 A.M. – 10:45 A.M

3:00 P.M. – 3:30 P.M..

Friday

10:00 A.M. – 10:30 A.M

E-MAIL:

Please check your e-mail regularly. I rely heavily on the use of e-mail to communicate with students enrolled in my classes.

DIVERSITY IN REGARD TO LEARNING ENVIRONMENT. The University of South Dakota supports an inclusive learning environment where diversity and individual differences are understood, respected, appreciated, and recognized as a source of strength.

LAW SCHOOL ACADEMIC RULES AND STUDENT POLICIES: Students are obligated to comply with the Law School's Academic Rules and Student Policies and to observe applicable rules and instructions issued by the faculty. See: Academic Rules & Student Policies <http://link.usd.edu/159>

FREEDOM IN LEARNING: Under Board of Regents and University policy student academic performance may be evaluated solely on an academic basis, not on opinions or conduct in matters unrelated to academic standards. Students should be free to take reasoned exception to the data or views offered in any course of study and to reserve judgment about matters of opinion, but they are responsible for learning the content of any course of study for which they are enrolled. Students who believe that an academic evaluation reflects prejudiced or capricious consideration of student opinions or conduct unrelated to academic standards should contact the Dean's Office to initiate a review of the evaluation.

DISABILITY SERVICES: Any student who feels s/he may need academic accommodations or access accommodations based on the impact of a documented disability should register with USD Disability Services no later than the first week of class. Disability Services is the official office to assist students through the process of disability verification and coordination of appropriate and reasonable accommodations. If you have a disability for which you are or may be requesting an accommodation, please contact Associate Dean Tom Sorensen in room 250 or at Tom.Sorensen@usd.edu or 677-5393, AND Ernetta L. Fox, Director of Disability Services, Service Center room 119, (605) 677-6389, dservices@usd.edu, as early as possible in the semester. For more information, see disabilityservices@usd.edu

DISHONESTY: No credit can be given for a dishonest assignment. At the discretion of the instructor, a student caught engaging in any form of academic dishonesty may be:

- a. Given a zero for that assignment.
- b. Allowed to rewrite and resubmit the assignment for credit.
- c. Assigned a reduced grade for the course.
- d. Dropped from the course.
- e. Failed in the course.

WEATHER: USD Policy concerning Weather and Holding of Classes: See <http://link.usd.edu/111>